

**FACIALLY NEUTRAL, FUNCTIONALLY NOT: LAW, DISCRETION, AND THE
STATUS-BASED REGULATION OF LGBTQ IDENTITY IN THE SHADOW OF EQUAL PROTECTION**

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ABSTRACT

This Article develops the concept of status-based regulation to explain how contemporary governance manages LGBTQ identity through administrative and discretionary mechanisms rather than explicit criminal prohibitions. Tracing the doctrinal arc from Robinson v. California through Powell v. Texas to City of Grants Pass v. Johnson, it shows how the Supreme Court has narrowed constitutional protections by recharacterizing identity-based harms as conduct regulation. It argues that United States v. Skrimmetti extends that analytic move to the LGBTQ context, substantially limiting, though not eliminating, the availability of heightened scrutiny by permitting courts to redescribe identity-based classifications as neutral distinctions.

Drawing on constitutional law, queer criminology, and sociolegal theory, the Article treats doctrine, administrative design, and discretionary implementation as mutually constitutive. It demonstrates how ostensibly neutral frameworks convert identity into a trigger for intervention across domains such as public expression, municipal permitting, custodial classification, and access to public facilities. Because these systems operate through discretionary implementation rather than explicit classification, they produce identity-based outcomes that largely evade equal-protection doctrine. An intersectional framework further shows how these dynamics concentrate on LGBTQ individuals whose exposure is compounded by race, poverty, immigration status, and criminal-legal contact.

The Article concludes by identifying the institutional logics that sustain status-based regulation and outlining reforms that operate across legal registers. Because constitutional doctrine is poorly suited to address harms that emerge through implementation, effective reform must engage statutory design, agency policy, supervisory practices, and data-driven oversight while incorporating community participation as a structural feature of governance. The concept of status-based regulation thus provides a framework for understanding how identity-based governance persists despite formal legal equality and how it might be contested within existing institutional constraints.

Keywords:

Status-based regulation; Equal Protection Clause; administrative governance; discretionary enforcement; LGBTQ rights; policing; procedural justice; queer criminology; over-policing and under-protection; LGBTQ minority stress.

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INTRODUCTION

In recent years, state regulation affecting lesbian, gay, bisexual, transgender, and queer (LGBTQ) individuals in the United States has entered a period of renewed legal and institutional transformation. Although the promise of equal protection under law has expanded to include marriage¹ and select areas of nondiscrimination,² everyday encounters between LGBTQ people and state actors reveal persistent forms of regulatory control.³ Contemporary governance often regulates marginalized identities through administrative mechanisms rather than explicit criminal prohibitions, reflecting a broader shift in how social control is exercised.⁴

Katherine Franke’s analysis of marriage equality illustrates the dynamic. In *Wedlocked*, she argues that even as same-sex couples gained access to marriage, the state’s authority over intimate life expanded rather than receded.⁵ Marriage law does not merely recognize relationships; it organizes them by imposing duties of support and fidelity and conditioning a wide array of public and private benefits on conjugal form. As marriage equality spread, marriage increased its role as the dominant framework for defining partners’ rights.⁶

The persistence of regulation despite formal equality is not unique to LGBTQ communities. It reflects a broader doctrinal pattern in which the Supreme Court has progressively narrowed constitutional protections against status-based punishment. In *Robinson v. California*, the Court held that the Eighth Amendment prohibits criminalizing a person’s status alone.⁷ In *Powell v. Texas*, a fractured Court cabined that holding by recharacterizing public intoxication as regulable conduct rather than punishable status.⁸ In *City of Grants Pass v. Johnson*, the Court completed

¹ Obergefell v. Hodges, 576 U.S. 644 (2015).

² Bostock v. Clayton Cnty., 590 U.S. 644, 650–51 (2020) (holding that Title VII’s prohibition on discrimination “because of . . . sex” includes discrimination based on sexual orientation and gender identity).

³ KATHERINE FRANKE, *WEDLOCKED: THE PERILS OF MARRIAGE EQUALITY* 12–15 (2015).

⁴ See MATTHEW BALL, *CRIMINOLOGY AND QUEER THEORY: DANGEROUS BEDFELLOWS?* (2016); PAISLEY CURRAH, *SEX IS AS SEX DOES: GOVERNING TRANSGENDER IDENTITY* (2022).

⁵ FRANKE, *supra* note 3, *passim*.

⁶ *Id.* at 98.

⁷ Robinson v. California, 370 U.S. 660, 667 (1962).

⁸ Powell v. Texas, 392 U.S. 514, 532 (1968) (plurality opinion).

the narrowing arc, holding that enforcement of anti-camping ordinances against homeless individuals regulates conduct rather than punishes the status of homelessness, even where the regulated conduct is an involuntary incident of that status.⁹ At each step, the Court declined to recognize an identity-based claim by recharacterizing the regulation as targeting conduct rather than status.

The Supreme Court's 2025 decision in *United States v. Skrametti* is the LGBTQ-specific instance of that long-running doctrinal move.¹⁰ By characterizing Tennessee's prohibition on gender-affirming medical care for transgender minors as an age- and medical-use distinction rather than a sex- or transgender-status classification, the *Skrametti* majority replicated the same analytic maneuver the Court employed in *Powell* and *Grants Pass*: it refused to see status where the regulation's practical operation is organized around it.¹¹

Although *Skrametti* addressed a categorical statutory prohibition rather than the decentralized administrative discretion that characterizes contemporary status-based regulation, it nonetheless advances a form of doctrinal foreclosure. The claim is practical rather than absolute because doctrinal pathways remain formally available, but the evidentiary burdens they impose and the deferential posture they adopt make them functionally inadequate for the range of harms status-based regulation produces.¹² When laws or policies that classify individuals in ways that should warrant heightened scrutiny instead receive only deferential review, administrative mechanisms that govern status are unlikely to face searching review and rarely capture the identity-based harms they produce.¹³ To analyze that gap, this Article uses the concept of *status-based regulation*: a governance form in which identity, rather than conduct, triggers administrative intervention through facially neutral frameworks that are themselves products of law.¹⁴

The framing that follows is best understood as a structural critique paired with constrained reformism. The same institutional logics that produce status-based regulation also shape the prospects for reform, and the analysis therefore rejects both the view that doctrinal correction alone is sufficient and the view that structural constraints render incremental reform futile. Effective intervention must instead operate across legal registers—doctrine, statute, agency policy, and discretionary practice—rather than relying on any single lever.

The Article proceeds in four Parts. Part I lays the theoretical groundwork, tracing the doctrinal erosion of status-based protections from *Robinson* through *Grants Pass*, introduces the concept of status-based regulation, and situates it within the literatures on governmentality, bureaucratic sex classification, queer criminology, and intersectionality. Part II surveys

⁹ *City of Grants Pass v. Johnson*, 603 U.S. 667, 687–89 (2024).

¹⁰ *United States v. Skrametti*, 605 U.S. 495 (2025).

¹¹ *See id.* at 511–17 (rejecting arguments that the law made sex-based classifications); *id.* at 517–22 (rejecting arguments that the law classified on the basis of transgender status); *see also infra* PART II.E (analyzing *Skrametti* in detail).

¹² *See infra* notes 125, 190–191, 200–202 and accompanying text.

¹³ The narrowing arc is traced in detail *infra* PART I.A. The deferential review applied to administrative mechanisms is examined *infra* PART II.E (analyzing *Skrametti* and *Geduldig v. Aiello*, 417 U.S. 484 (1974), as doctrinal capstones).

¹⁴ Although the analysis that follows focuses primarily on LGBTQ populations, it is important to note that the status-based regulatory framework extends to other forms of identity governance, including the governance of homelessness and addiction and the regulation of intersex bodies. *See infra* PARTS I.A–C.

contemporary litigation across drag-performance regulation, municipal permitting, custodial classification, and access to public facilities, presenting each domain as an integrated phenomenon and culminating in an analysis of *Skrimetti* and *Geduldig* as doctrinal capstones of the narrowing arc traced in Part I. Part III develops the institutional logics that sustain status-based regulation. Part IV identifies implications for policy and practice and confronts the obstacles that make reform difficult.

I. THEORETICAL FRAMEWORKS

A. *The Status-Conduct Distinction and Its Erosion*

The constitutional regulation of identity in the United States has long been mediated by a distinction between status and conduct. That distinction raises a threshold question: whether the Eighth Amendment’s prohibition on cruel and unusual punishment, or the Due Process Clause’s protection of liberty, constrains the state’s authority to criminalize or regulate identity as such. The Supreme Court’s treatment of that question over six decades reveals a pattern of initial recognition followed by progressive narrowing, a doctrinal arc that is essential context for understanding how contemporary administrative governance of LGBTQ identity operates largely beyond the reach of constitutional scrutiny.

1. *Robinson v. California*

In *Robinson v. California*, the Supreme Court struck down a California statute that made it a criminal offense for a person to “be addicted to the use of narcotics.”¹⁵ Justice Stewart’s majority opinion held that punishing the mere status of addiction, without requiring any act of use, possession, or antisocial behavior, violated the Eighth and Fourteenth Amendments.¹⁶ The opinion analogized addiction to illness, reasoning that just as a state could not criminalize the status of being mentally ill or afflicted with a venereal disease, it could not criminalize the status of narcotics addiction.¹⁷

Read broadly, *Robinson* suggested that the Constitution imposes a categorical limit on the state’s power to punish individuals for conditions or characteristics that define who they are rather than what they have chosen to do. The opinion’s language invited application beyond addiction to a wide range of identity-based regulations.¹⁸ Such a broad reading, however, was almost immediately cabined.

¹⁵ 370 U.S. 660, 667 (1962).

¹⁶ *Id.* (“We hold that a state law which imprisons a person thus afflicted as a criminal, even though he has never touched any narcotic drug within the State or been guilty of any irregular behavior there, inflicts a cruel and unusual punishment in violation of the Fourteenth Amendment.”).

¹⁷ *Id.* at 666–67.

¹⁸ *See id.* at 666 (“Even one day in prison would be a cruel and unusual punishment for the ‘crime’ of having a common cold.”). For scholarly commentary on *Robinson*’s potential reach, see Stephen J. Schulhofer, *Harm and Punishment: A Critique of Emphasis on the Results of Conduct in the Criminal Law*, 122 U. PA. L. REV. 1497, 1553–58 (1974). For an account of how status-based criminal prohibitions targeting sexual orientation persisted after *Robinson*, see HENRY F. FRADELLA, *SEX AND PRIVACY IN AMERICAN LAW* 13–34 (2023).

2. *Powell v. Texas*

Six years after *Robinson*, the Court confronted its logical extension in *Powell v. Texas*.¹⁹ Leroy Powell, a person with chronic alcoholism, was convicted under a Texas public-intoxication statute. He argued that because his alcoholism compelled him to drink and to appear in public while intoxicated, punishing him for public drunkenness was, in substance, punishing him for the status of having alcoholism in violation of *Robinson*.²⁰

The Court rejected that argument, but it did so without a majority opinion. Justice Marshall's plurality opinion, joined by three other Justices, distinguished *Robinson* on the ground that Texas had not criminalized the status of alcoholism but rather the conduct of appearing in public while intoxicated.²¹ Justice White concurred in the judgment on narrower grounds, providing the fifth vote to affirm Powell's conviction while expressing the view that the case might have come out differently had Powell shown he had no choice but to be in public.²² *Powell's* significance lies in how the plurality reframed the regulation. By redescribing the punishment of a condition's manifestation as punishment of conduct, the plurality established a template: when regulation operates on status, courts recharacterize it as conduct, and the constitutional objection dissolves.²³

3. *The Vagueness and Overbreadth Prongs*

While the status–conduct distinction was narrowed through the *Robinson–Powell* line, a parallel doctrinal development addressed the same regulatory phenomenon from a different angle. In *Papachristou v. City of Jacksonville*, the Supreme Court invalidated a vagrancy ordinance that criminalized broadly defined categories such as “rogues and vagabonds” and “persons wandering or strolling” without lawful purpose, holding that it failed to provide fair notice and encouraged arbitrary and discriminatory enforcement.²⁴ The ordinance's practical function, the Court emphasized, was to vest police with unfettered discretion to target disfavored populations.²⁵

A decade later, in *Kolender v. Lawson*, the Court struck down a statute requiring individuals who “loiter or wander” to provide “credible and reliable” identification, concluding that it similarly vested virtually complete discretion in police and created an unacceptable risk of arbitrary enforcement.²⁶ Justice Brennan's concurrence made explicit the connection to status

¹⁹ 392 U.S. 514 (1968).

²⁰ *Id.* at 517–21.

²¹ *Id.* at 532 (plurality opinion).

²² *Id.* at 548–54 (White, J., concurring in the result).

²³ The recharacterization move in *Powell* has been widely noted in the scholarly literature. *See, e.g.*, Alice Ristroph, *The Constitution of Police Violence*, 64 UCLA L. REV. 1182, 1220–24 (2017).

²⁴ 405 U.S. 156, 156–57 (1972).

²⁵ *Id.* at 168–71. For analysis of *Papachristou's* significance for the policing of marginalized communities, see Jamelia N. Morgan, *Rethinking Disorderly Conduct*, 109 CALIF. L. REV. 1637 (2021) [<https://doi.org/10.15779/Z38KD1QM20>]; Dorothy E. Roberts, *Race, Vagueness, and the Social Meaning of Order-Maintenance Policing*, 89 J. CRIM. L. & CRIMINOLOGY 775 (1999) [<https://doi.org/10.2307/1144123>].

²⁶ 461 U.S. 352, 353–54 (1983).

regulation, observing that such laws target individuals based on their propensity to be in public and fall disproportionately on marginalized groups.²⁷

Municipalities did not abandon these regulatory aims in response; they restructured them. Rather than relying on broad vagrancy provisions, they enacted a proliferation of narrowly drawn, conduct-specific ordinances (sit-lie laws, anti-camping rules, aggressive-panhandling bans, and similar measures) that individually satisfy constitutional requirements while collectively preserving broad enforcement discretion.²⁸ By disaggregating the single, capacious vagrancy offense into a menu of facially specific prohibitions, municipalities created an enforcement toolkit that, taken ordinance by ordinance, complies with *Papachristou*'s requirements.²⁹ The result is a regulatory architecture in which no single ordinance is constitutionally infirm, but the cumulative effect of overlapping prohibitions vests officers with broad latitude to initiate contact with, cite, or arrest individuals whose presence in public space is deemed undesirable.³⁰ Because the targeted acts are ordinary incidents of poverty or public visibility, conduct in practice tracks status.³¹

This post-*Papachristou* adaptation is directly relevant to the regulation of LGBTQ communities. Municipal toolkits similar to those used to govern visible homelessness have long been deployed against LGBTQ individuals and the spaces associated with them.³² Anti-cruising ordinances, public-lewdness statutes with expansive definitions, and loitering-with-intent-to-solicit provisions have functioned as conduct-specific successors to the vagrancy laws that once served as primary tools for policing sexual and gender nonconformity.³³ Each is narrowly drawn

²⁷ *Id.* at 363 (Brennan, J., concurring). For analysis of how vagrancy and loitering statutes have historically functioned as instruments for regulating LGBTQ identity, see JOEY L. MOGUL ET AL., *QUEER (IN)JUSTICE: THE CRIMINALIZATION OF LGBT PEOPLE IN THE UNITED STATES* 17, 49 (2011); AMNESTY INT'L, *STONEWALLED: POLICE ABUSE AND MISCONDUCT AGAINST LESBIAN, GAY, BISEXUAL AND TRANSGENDER PEOPLE IN THE U.S.* (2005), <https://www.amnesty.org/en/wp-content/uploads/2021/08/amr511222005en.pdf> [<https://perma.cc/LTP4-NH7P>]; see also CARRIE L. BUIST & EMILY LENNING, *QUEER CRIMINOLOGY* 36–41 (2d ed. 2022).

²⁸ KATHERINE BECKETT & STEVE HERBERT, *BANISHED: THE NEW SOCIAL CONTROL IN URBAN AMERICA* 40–62 (2010) (showing how the cumulative deployment of individually narrow ordinances replicates the discretionary reach of the vagrancy laws they replaced); Robert C. Ellickson, *Controlling Chronic Misconduct in City Spaces: Of Panhandlers, Skid Rows, and Public-Space Zoning*, 105 *YALE L.J.* 1165, 1171–82 (1996) (analyzing the proliferation of conduct-specific ordinances targeting homelessness-related behavior in public spaces).

²⁹ Katherine Beckett & Steve Herbert, *Dealing with Disorder: Social Control in the Post-Industrial City*, 12 *THEORETICAL CRIMINOLOGY* 5, 8–15 (2008) [<https://doi.org/10.1177/1362480607085792>] (arguing that cities deploy overlapping civil and criminal ordinances as a coordinated toolkit for banishing marginalized populations from public space).

³⁰ See generally RISA L. GOLUBOFF, *VAGRANT NATION: POLICE POWER, CONSTITUTIONAL CHANGE, AND THE MAKING OF THE 1960S* (2016) (tracing how vagrancy law functioned as a tool of discretionary social control and how its invalidation reshaped policing strategies); Sara K. Rankin, *Punishing Homelessness*, 22 *NEW CRIM. L. REV.* 99 (2019) [<https://doi.org/10.1525/nclr.2019.22.1.99>] (analyzing laws that punish the conduct of necessary, life-sustaining activities in public, even when many people have no other option).

³¹ Chris Herring, *Complaint-Oriented Policing: Regulating Homelessness in Public Space*, 84 *AM. SOCIO. REV.* 769 (2019) [<https://doi.org/10.1177/000312241987267>]; Debra A. Livingston, *Police Discretion and the Quality of Life in Public Places: Courts, Communities, and the New Policing*, 97 *COLUM. L. REV.* 551 (1997).

³² MOGUL ET AL., *supra* note 27, at 41–61.

³³ WILLIAM N. ESKRIDGE, JR., *GAYLAW: CHALLENGING THE APARTHEID OF THE CLOSET* 57–97 (1999) (discussing the shift from vagrancy-based enforcement to conduct-specific ordinances targeting same-sex solicitation and public lewdness).

enough to survive facial vagueness challenges, yet each vests officers with sufficient discretion to target LGBTQ individuals selectively. Operating together within a broader ensemble of public-order regulation, these measures structure how LGBTQ visibility in public space is governed.³⁴

The proliferation of post-*Papachristou* ordinances is heterogeneous. Some reflect genuine efforts to specify prohibited conduct in response to vagueness concerns, while others function as strategic adaptations designed to preserve discretionary reach while satisfying formal constitutional requirements. The analysis here is concerned with the cumulative effect of this ensemble rather than the motivation behind any single ordinance. As Skolnik describes, this dynamic amounts to “constitutional gamesmanship,” in which governmental actors comply with constitutional constraints in form while undermining their protective function in practice.³⁵ The result is a doctrinal structure that constrains only the most standardless forms of discretion while leaving intact the structured administrative frameworks through which status continues to be governed.³⁶ The same dynamic operates when regulatory authority shifts from criminal ordinances to administrative mechanisms that achieve comparable identity-based governance through channels that constitutional doctrine, oriented toward explicit classification and discriminatory intent, is less equipped to reach.

Papachristou and *Kolender* thus represent a second prong of the doctrinal architecture governing status-based regulation.³⁷ But the municipal response to those decisions in proliferating narrowly tailored, discretion-maximizing ordinances demonstrates that this prong constrains only the most extreme forms of discretion, leaving intact the structured discretion embedded in facially adequate regulatory frameworks.

The post-*Papachristou* proliferation occupies a third position: laws that individually satisfy constitutional minima but collectively reconstitute the discretionary architecture through which status is governed. Together, these developments produce a constitutional framework in which direct status punishment is formally prohibited but practically cabined, standardless discretion is constrained only at the margins, and structured discretion operating through an ensemble of narrow ordinances remains largely beyond constitutional reach, even though such enforcement and design are themselves authorized by law.

³⁴ Brandon A. Robinson, *The Lavender Scare in Homonormative Times: Policing, Hyper-Incarceration, and LGBTQ Youth Homelessness*, 34 GENDER & SOC’Y 210, 218–20 (2020) [<https://doi.org/10.1177/0891243220906172>].

³⁵ Terry Skolnik, *Criminal Justice and the Erosion of Constitutional Rights*, 66 B.C. L. REV. 1679, 1729 (2025) (defining gamesmanship as occurring “when governmental actors employ an unjust—but lawful—tactic to bypass constitutional rights”).

³⁶ *Id.* at 1729–31.

³⁷ The two prongs are not doctrinally independent. The vagueness doctrine’s concern with standardless discretion, see *Papachristou v. City of Jacksonville*, 405 U.S. 156, 168–71 (1972), is the procedural counterpart to *Robinson*’s substantive concern with status punishment, see *Robinson v. California*, 370 U.S. 660, 666–67 (1962). A statute that criminalizes status directly violates *Robinson*; a statute that criminalizes conduct so vaguely defined that enforcement effectively targets status violates the Due Process Clause under *Papachristou* and *Kolender*. The two doctrines thus bracket the field of status-based regulation from different directions, but neither, as the subsequent discussion of *Grants Pass* demonstrates, reaches the structured discretion embedded in facially adequate administrative frameworks.

4. *Grants Pass* and the Completion of the Narrowing Arc

In *City of Grants Pass v. Johnson*, the Supreme Court completed the doctrinal narrowing begun in *Powell*.³⁸ The case involved an Oregon municipality's enforcement of anti-camping ordinances, with prohibitions on sleeping on public property using a blanket, pillow, or similar covering, against individuals with no access to shelter. Writing for the majority, Justice Gorsuch held that the ordinances regulated conduct rather than punished the status of homelessness, emphasizing that they applied to all persons equally and that the Eighth Amendment constrains only punishment after conviction, not the scope of conduct subject to criminalization.³⁹ The Court declined to extend *Robinson* beyond direct criminalization of status, rejecting a functional inquiry into whether the regulated conduct was an involuntary incident of that status.⁴⁰ Justice Sotomayor's dissent argued that this formalism obscured the ordinances' practical operation: for individuals without shelter, sleeping outside is unavoidable, so punishing the act effectively punishes the status.⁴¹

Grants Pass serves as the doctrinal capstone of this narrowing arc in two respects. First, it forecloses the most viable pathway for challenging regulation of conduct that is an involuntary incident of status, holding that the Eighth Amendment does not reach such regulation when framed in conduct terms. Second, it affirms recharacterization as a general doctrinal technique: when regulation operates on status but is framed as conduct, constitutional objections fail. The Court employs the same analytic move in *United States v. Skrametti*.⁴²

The analogy, however, is structural rather than doctrinal. The *Robinson–Powell–Grants Pass* line operates under the Eighth Amendment, asking whether punishment targets status, while *Skrametti* arises under the Equal Protection Clause, asking whether a classification warrants heightened scrutiny. These frameworks impose different inquiries and remedies. What unites them is a recurring analytic move: the Court declines to recognize identity-based claims by recharacterizing regulation as something else—conduct rather than status, or a non-suspect classification rather than a sex- or transgender-status classification. This similarity identifies a pattern in how the Court resolves identity-adjacent claims without collapsing the doctrinal distinction between the two lines of cases.

Taken together, the doctrinal arcs traced here converge on a single structural observation. Direct constitutional protection against status-based regulation has narrowed to reach only the most explicit forms of status criminalization, while the administrative and discretionary mechanisms through which status is now governed operate under deferential frameworks that rarely capture identity-based harms, including rational-basis review, deference to administrative classification, and the discriminatory-purpose requirement. The space left by this contraction is filled by administrative status-based regulation.

³⁸ 603 U.S. 667 (2024).

³⁹ *Grants Pass*, 603 U.S. at 687–89.

⁴⁰ *Id.* at 679–82.

⁴¹ *Id.* at 718–22 (Sotomayor, J., dissenting).

⁴² *See United States v. Skrametti*, 605 U.S. 495, 511–22 (2025).

B. From Direct Status Regulation to Administrative Status-Based Regulation

As direct constitutional protection against status-based punishment narrowed, and as municipalities refined their criminal-law toolkit in response to the vagueness doctrine's constraints by replacing broad vagrancy statutes with menus of narrow, conduct-specific ordinances that preserved discretionary reach while satisfying constitutional minima, the mechanisms through which identity is governed migrated further still.

1. The Migration of Regulatory Authority

During much of the twentieth century, overt forms of status-based policing of LGBTQ people included vice raids, anti-cross-dressing statutes, and sodomy laws that explicitly criminalized identity or its expression.⁴³ Social control also relied heavily on discretionary enforcement of vague offenses such as loitering and disorderly conduct, the very provisions whose limits were addressed in *Papachristou* and *Kolender*. These offenses gave officers broad latitude to target LGBTQ individuals, much as such laws have historically been used to police communities of color.⁴⁴

What distinguishes the present moment is not the disappearance of these practices but their expansion and formalization within administrative governance.⁴⁵ Although discretion remains central to the criminal legal system,⁴⁶ contemporary disputes over drag-performance regulation, Pride event permitting, gender-identity classification, and access to public facilities demonstrate how status-based regulation now operates through bureaucratic mechanisms that shape participation in public life.⁴⁷ Framed in terms of public safety, child protection, or free speech, these disputes expose how ostensibly neutral regulatory frameworks produce disproportionate effects on marginalized groups.⁴⁸

⁴³ See William N. Eskridge, Jr., *Law and the Construction of the Closet: American Regulation of Same-Sex Intimacy, 1880–1946*, 82 IOWA L. REV. 1007, 1017–26, 1054–59, 1080–83 (1997).

⁴⁴ BUIST & LENNING, *supra* note 27, at 36–41; MOGUL ET AL., *supra* note 27, at 17, 49.

⁴⁵ See JODY ARRAYALES & ELANA REDFIELD, UCLA WILLIAMS INST., THE IMPACT OF 2025 STATE ANTI-TRANSGENDER LEGISLATION ON YOUTH (2026), <https://williamsinstitute.law.ucla.edu/wp-content/uploads/2025-Anti-Trans-Legislation-Jan-2026.pdf> [<https://perma.cc/JAH8-XV82>] (documenting the rapid expansion of state laws restricting gender-affirming care, sports participation, bathroom access, and pronoun use for transgender youth); see also Valerie Jenness & Alexis Rowland, *The Structure and Operation of the Transgender Criminal Legal System Nexus in the United States: Inequalities, Administrative Violence, and Injustice at Every Turn*, 7 ANN. REV. CRIMINOLOGY 283, 284–85 (2024) [<https://doi.org/10.1146/annurev-criminol-022222-040947>]; *More States Pass Laws Restricting Transgender People's Bathroom Use*, STATELINE (June 26, 2025) [hereinafter STATELINE], <https://stateline.org/2025/06/26/more-states-pass-laws-restricting-transgender-peoples-bathroom-use/> [<https://perma.cc/PX5Z-48V8>]; *Tennessee Drag Ban to Stay as SCOTUS Refuses to Hear the Case*, WPLN NEWS (Feb. 25, 2025), <https://wpln.org/post/tennessee-drag-ban-to-stay-as-scotus-refuses-to-hear-the-case/> [<https://perma.cc/9YYQ-676E>].

⁴⁶ See MICHAEL LIPSKY, STREET-LEVEL BUREAUCRACY: DILEMMAS OF THE INDIVIDUAL IN PUBLIC SERVICES (1980); SAMUEL WALKER, TAMING THE SYSTEM: THE CONTROL OF DISCRETION IN CRIMINAL JUSTICE, 1950–1990 (1993) [hereinafter WALKER, TAMING THE SYSTEM].

⁴⁷ See *infra* PART II.

⁴⁸ See, e.g., CURRAH, *supra* note 4, at 149 (noting that “the disproportionate presence of trans people in prison and the mistreatment they face once incarcerated reflect the effects of transphobia on the outside”).

Contrary to predictions that *Lawrence v. Texas* would mark the end of morality-based regulation,⁴⁹ current developments reflect its reconfiguration rather than its disappearance. Institutions now regulate not only LGBTQ visibility in public space but also the conditions under which individuals participate in the social order. This shift is best understood through the lens of administrative governance, in which identity is managed through classification and institutional design rather than explicit prohibition.

Foucault's concept of governmentality captures this transformation: modern power operates less through direct prohibition than through norms, classifications, and institutional arrangements that render populations subject to regulation.⁵⁰ Paisley Currah's account of transgender governance provides a concrete institutional example. In *Sex Is as Sex Does*, Currah shows that sex is not merely recorded by the state but produced through bureaucratic classification regimes, with agencies defining and operationalizing sex differently depending on regulatory purpose, whether in identification documents, custodial placement, public benefits, or access to facilities.⁵¹ These systems require identity to be certified and validated across institutional contexts, transforming it into an administrative object of governance.⁵²

This dynamic is evident in the practical consequences of administrative classification. A transgender individual may possess a driver's license marked "F," a birth certificate marked "M," and a Social Security record reflecting a third designation, because each agency applies different criteria for sex classification.⁵³ Although no law criminalizes this inconsistency, it can restrict access to benefits, complicate employment verification, trigger scrutiny in travel and law enforcement encounters, and shape classification decisions in custodial settings.⁵⁴

Queer criminology and sociolegal scholarship further demonstrate how these mechanisms produce unequal outcomes across institutional domains. Jenness and Rowland describe the "transgender criminal legal system nexus," in which interconnected systems—including policing, corrections, health care, and identification regimes—collectively produce inequality for transgender individuals.⁵⁵ This nexus extends beyond the criminal legal system to include restrictions on public appearance, access to services, and participation in civic life, with each

⁴⁹ *Lawrence v. Texas*, 539 U.S. 558, 590 (2003) (Scalia, J., dissenting).

⁵⁰ See Michel Foucault, *Governmentality*, in *THE FOUCAULT EFFECT: STUDIES IN GOVERNMENTALITY* 87 (Graham Burchell, Colin Gordon & Peter Miller eds., 1991) (originally delivered as a lecture in 1978). Engagement with the broader governmentality literature lies beyond the scope of this Article. The concept is invoked here for its descriptive purchase on the migration of regulatory authority from prohibition to administrative classification; the Article's normative arguments do not depend on the Foucauldian framework. For critiques reconciling rights discourse with Foucauldian analysis, see BEN GOLDBERGER, *FOUCAULT AND THE POLITICS OF RIGHTS* (2015); WENDY BROWN, *STATES OF INJURY: POWER AND FREEDOM IN LATE MODERNITY* (1995); and NIKOLAS ROSE, *POWERS OF FREEDOM: REFRAMING POLITICAL THOUGHT* (1999).

⁵¹ See CURRAH, *supra* note 4, at 7–10.

⁵² See *id.* at 76–98, 99–118, 119–42.

⁵³ See CURRAH, *supra* note 4, at 1–10, 55, 70, 76–98, 99–118, 169.

⁵⁴ See *id.* at 76–98, 119–42; DEAN SPADE, *NORMAL LIFE: ADMINISTRATIVE VIOLENCE, CRITICAL TRANS POLITICS, AND THE LIMITS OF LAW* 73–93 (2d ed. 2015) (discussing benefits, employment verification, identification documents, prisons, and public agencies decisions as concrete administrative regimes that produce material harm without overt criminalization).

⁵⁵ *Id.* at 287.

domain reinforcing the others.⁵⁶ Status-based regulation, in this sense, operates through cumulative institutional interactions that convert identity into a trigger for intervention across multiple sites of governance.

These dynamics also emerge within broader patterns of disorder policing, public-morality enforcement, and risk management.⁵⁷ Such practices operate through discretionary decision-making and may appear neutral in form, yet they function as identity-based regulation when gender and sexual diversity are treated as threats to public order.⁵⁸ When enforcement is triggered by identity rather than conduct, procedural justice concerns become central: individuals are more likely to perceive interventions as arbitrary, stigmatizing, and discriminatory, undermining trust in legal institutions.⁵⁹

Scholars have long described these processes as forms of “gender policing,” in which state actors enforce normative expectations about gender presentation and expression.⁶⁰ Increasingly, however, administrative decision-making through licensing regimes, identification systems, and facility-access rules, has become the primary mechanism for regulating gender identity.⁶¹ These systems do not simply constrain behavior; they structure the conditions under which identity is recognized, validated, or excluded within institutional settings.

Kenji Yoshino’s concept of “covering” further illuminates this shift; he argues that as overt discrimination becomes less acceptable, regulation increasingly operates through pressures toward assimilation rather than exclusion.⁶² Marginalized individuals are encouraged to downplay aspects of their identity in order to conform to dominant norms, producing a form of regulation that is less visible but no less consequential. Legal inclusion thus coexists with subtle forms of identity management, reinforcing the claim that contemporary status-based regulation operates through bureaucratic discretion rather than explicit criminal sanction.⁶³

⁵⁶ See *id.* at 285 (describing the nexus as “inextricably intertwined with the myriad ways state policy and actors orient to and construct gender-nonconforming people as illegible, suspicious, and criminal”).

⁵⁷ See BERNARD E. HARCOURT, *ILLUSION OF ORDER: THE FALSE PROMISE OF BROKEN WINDOWS POLICING* (2001); ANNA LVOVSKY, *VICE PATROL: COPS, COURTS, AND THE STRUGGLE OVER URBAN GAY LIFE BEFORE STONEWALL* (2021).

⁵⁸ MOGUL ET AL., *supra* note 27, at 41–45 (documenting how public-order and morality laws have historically been used to police gender nonconformity and LGBTQ visibility); Robinson, *supra* note 34, at 218–20 (describing how discretionary policing practices treat visible gender nonconformity as suspicious behavior, enabling identity-based enforcement under ostensibly neutral public-order laws).

⁵⁹ See TOM R. TYLER, *WHY PEOPLE OBEY THE LAW* 4–7, 115–18 (2d ed. 2006); Toby Miles-Johnson, *Confidence and Trust in Police: How Sexual Identity Difference Shapes Perceptions of Police*, 25 CURRENT ISSUES CRIM. JUST. 685, 687–88 (2013) [<https://doi.org/10.1080/10345329.2013.12035990>].

⁶⁰ See, e.g., Ashley J. Bohrer, *Gender Policing the Poor: Toward a Conceptual Apparatus*, 33 FEMINIST FORMATIONS 74 (2021) [<https://dx.doi.org/10.1353/ff.2021.0004>]; Ki Namaste, *Genderbashing: Sexuality, Gender, and the Regulation of Public Space*, 14 ENV’T & PLAN. D: SOC’Y & SPACE 221 (1996) [<https://doi.org/10.1068/d140221>].

⁶¹ See Sebastian Braun, *Kansas Revokes Driver’s Licenses from Trans Residents in Latest Assault on Rights*, THE GUARDIAN (Feb. 26, 2026), <https://www.theguardian.com/us-news/2026/feb/26/kansas-trans-drivers-license-law-assault-on-rights> [<https://perma.cc/4DVJ-HARZ>].

⁶² KENJI YOSHINO, *COVERING: THE HIDDEN ASSAULT ON OUR CIVIL RIGHTS* (2006).

⁶³ *Id.*, *passim*.

Taken together, these theoretical perspectives reveal a consistent pattern: status-based regulation has not disappeared but has been reconstituted as a form of administrative governance. Rather than prohibiting identity directly, modern regulatory systems manage it through classification, discretion, and institutional design, producing identity-based outcomes that persist despite formal legal equality.⁶⁴

2. Defining Status-Based Regulation

Central to this Article's analysis is the concept of status-based regulation: a governance form in which identity, rather than conduct, triggers administrative intervention, often through facially neutral mechanisms that fall outside the conventional architecture of equal-protection doctrine.⁶⁵ A regulatory regime constitutes status-based regulation when three conditions are jointly met:

1. Identity functions as the operative trigger for administrative intervention, whether explicitly named or institutionally encoded through assumptions that render identity a proxy for risk, suspicion, or disorder;
2. Identity operates as a *structuring principle* of the relevant institutional system, such that categories, decision rules, and enforcement priorities are organized around it rather than incidentally correlated with it; and
3. the regime produces systematic, identity-correlated enforcement outcomes not adequately explained by neutral application of its stated purposes.

The second condition distinguishes status-based regulation from disparate-impact governance more broadly. Zoning rules that burden religious communities, building codes affecting disabled individuals, or licensing schemes with incidental effects on immigrants may produce identity-correlated outcomes without being organized around identity itself. This framework instead captures regimes in which identity structures the operation of the regulatory apparatus either explicitly or implicitly. The third condition prevents the concept from collapsing into tautology by requiring observable patterns in implementation rather than mere theoretical susceptibility to identity-based effects.

The distinction between systems “organized around” identity and those merely “incidentally correlated” can be specified through three institutional-design markers. First, decision rules require identity-relevant information as an operative input, through documentary requirements, classification protocols, or screening categories that elicit identity-coded data even where neutral alternatives exist. Custodial classification systems requiring sex designation for housing illustrate this feature, as do permitting regimes that solicit information about event content in ways that surface organizer or audience identity. Second, the regime's categories track identity even when alternative categorizations would serve its stated purposes equally well. A public-decency framework that singles out drag performance, for example, organizes its categories around an identity-coded practice rather than the underlying conduct it purports to regulate. Third, enforcement priorities shift in response to identity-salient cues like visible LGBTQ presence, documentary inconsistency, or gender-nonconforming presentation, rather than to the conduct or

⁶⁴ See Tia Sherée Gaynor, *Social Construction and the Criminalization of Identity: State-Sanctioned Oppression and an Unethical Administration*, 20 PUB. INTEGRITY 358 (2018) [<https://doi.org/10.1080/10999922.2017.1416881>].

⁶⁵ See *infra* PART II.E.

risk the regime formally targets. These markers are not exhaustive, but together they supply an empirical basis for distinguishing structural organization from incidental correlation. They parallel features considered in the *Arlington Heights* circumstantial-evidence inquiry, but here function as indicators of institutional organization rather than proof of intent.

Unlike prior accounts focused primarily on criminalization⁶⁶ or bureaucratic sex classification,⁶⁷ this framework treats constitutional doctrine, discretionary enforcement, and institutional design as mutually constitutive registers of a single legal order: doctrine authorizes institutional discretion, institutional design encodes doctrinal categories into practice, and discretionary decisions both apply and reshape the meaning of the rules they administer. The third element, that discretionary practice can reshape doctrine, can be illustrated in the LGBTQ context through two examples.

In *Edmo v. Corizon, Inc.*,⁶⁸ the Ninth Circuit operationalized the Eighth Amendment's deliberate-indifference standard by evaluating the treatment of gender dysphoria against the World Professional Association for Transgender Health's Standards of Care, professional guidelines developed through clinical practice and expert consensus outside the legal system.⁶⁹ By treating significant deviation from those standards as evidence of medically unacceptable treatment, *Edmo* effectively made constitutional adequacy partly dependent on non-legal professional norms.⁷⁰ Federal district courts have adopted a similar approach by using the Prison Rape Elimination Act's (PREA)⁷¹ individualized housing-assessment requirement as a benchmark in evaluating Eighth Amendment challenges to genitalia-based housing assignments. In both settings, discretionary practice does not merely apply doctrine; it becomes part of what doctrine requires.⁷²

A second example arises in agency interpretation. In 2015, the Department of Education issued guidance stating that schools must generally treat transgender students consistent with their gender identity.⁷³ In *G.G. ex rel. Grimm v. Gloucester County School Board*, the Fourth Circuit deferred to that interpretation, holding that Title IX was ambiguous as applied to

⁶⁶ See generally BALL, *supra* note 4.

⁶⁷ See generally CURRAH, *supra* note 4.

⁶⁸ 935 F.3d 757, 791–92 (9th Cir. 2019).

⁶⁹ Eli Coleman et al., *Standards of Care for the Health of Transgender and Gender Diverse People, Version 8*, 23 INT'L J. TRANSGENDER HEALTH S1 (2022) [hereinafter WPATH Standards of Care] [<https://doi.org/10.1080/26895269.2022.2100644>] (containing the WPATH standards).

⁷⁰ *Edmo*, 935 F.3d at 786–93. The panel did not formally adopt WPATH as the constitutional standard, but its analysis treated significant departure from WPATH without principled justification as evidence supporting a finding that the chosen treatment was medically unacceptable for purposes of the deliberate-indifference inquiry. *Id.* at 791–92.

⁷¹ Pub. L. No. 108-79, 117 Stat. 972 (codified at 34 U.S.C. §§ 30301–30309); see also 28 C.F.R. § 115.42(c) (requiring case-by-case housing determinations for transgender and intersex inmates).

⁷² See, e.g., *Diamond v. Owens*, 131 F. Supp. 3d 1346, 1360–62 (M.D. Ga. 2015); *Hicklin v. Precynthe*, No. 4:16-cv-01357, 2018 WL 806764, at *6–8 (E.D. Mo. Feb. 9, 2018).

⁷³ See Letter from James A. Ferg-Cadima, Acting Deputy Assistant Sec'y for Pol'y, Off. for Civ. Rts. to Emily T. Prince (Rescinded), U.S. DEP'T OF EDUC., OFF. FOR CIV. RTS. (Jan. 7, 2015), <https://www.ed.gov/sites/ed/files/about/offices/list/ocr/letters/20150107-title-ix-prince-letter.pdf> [<https://perma.cc/AD94-QNWB>].

transgender students and that the agency's reading was permissible.⁷⁴ Although the Supreme Court later vacated the decision after the guidance was rescinded, the episode demonstrates how an agency's discretionary interpretation can supply the operative meaning of a statute, and how shifts in that interpretation can alter the law courts apply without new legislation.

These examples are contested. For instance, the Fifth Circuit declined to follow *Edmo*'s reliance on WPATH in *Gibson v. Collier*,⁷⁵ and the rescission of the Title IX guidance shifted the relevant agency interpretation.⁷⁶ But such disagreement reinforces the structural point: disputes over whether administrative practice should inform constitutional or statutory meaning are themselves contests over how legal authority is allocated across doctrinal and administrative domains. The claim here is therefore narrower than some administrative-constitutionalism accounts. Administrative practice does not consistently reshape doctrine, and judicial responses are uneven. Even so, the mechanism is real, traceable in specific cases, and especially salient in the LGBTQ custodial and educational contexts this Article examines.

The doctrinal gap that status-based regulation occupies can be clarified through the taxonomy of protected traits in equal-protection law. In the United States, heightened scrutiny applies primarily to two categories: immutable traits that individuals did not choose and cannot change (such as race or national origin), and constructively immutable traits so central to identity that they cannot be abandoned without unacceptable cost (such as religion). Jessica Clarke characterizes these as protection against chance and protection against choice.⁷⁷ Traits outside these categories receive only rational-basis review, even when strongly associated with subordination and historical disadvantage.⁷⁸ Terry Skolnik argues that this binary is incomplete, proposing a third category of *quasi-immutable* traits: characteristics that are relatively stable and difficult to change even if not permanently fixed or central to identity.⁷⁹ Poverty, homelessness, and criminal-record status are paradigmatic examples: individuals may wish to change these traits precisely because they ground discrimination, yet structural constraints make change resistant, producing a distinctive form of wrongfulness in which individuals are blamed both for possessing the trait and for failing to alter it.⁸⁰

This framework helps explain the doctrinal vulnerability of gender identity. When treated as fluid or mutable, gender identity risks falling outside categories that trigger heightened scrutiny, a dynamic illustrated by *Skrmetti*'s refusal to recognize transgender status as a suspect or quasi-suspect classification.⁸¹ Skolnik's concept of quasi-immutability provides a useful analytic lens for understanding how traits experienced as stable and identity-defining can nonetheless fall

⁷⁴ *G.G. v. Gloucester Cnty. Sch. Bd.*, 822 F.3d 709, 718–23 (4th Cir. 2016), *vacated*, 580 U.S. 1168 (2017).

⁷⁵ 920 F.3d 212 (5th Cir. 2019).

⁷⁶ See Sandra Battle & T.E. Wheeler II, Acting Assistant Sec'y for Civ. Rts. & Acting Assistant Att'y Gen. for Civ. Rts., Dear Colleague Letter, U.S. Dep't of Educ. & U.S. Dep't of Just. (Feb. 22, 2017), <http://i2.cdn.turner.com/cnn/2017/images/02/23/1atransletterpdf022317.pdf> [<https://perma.cc/W9MJ-G3Y2>].

⁷⁷ Jessica A. Clarke, *Against Immutability*, 125 YALE L.J. 2, 13, 23–24 (2015).

⁷⁸ See *San Antonio Indep. Sch. Dist. v. Rodriguez*, 411 U.S. 1, 28–29 (1973) (declining to recognize poverty or wealth as a suspect classification).

⁷⁹ Skolnik, *supra* note 35, at 210.

⁸⁰ *Id.* at 208–12.

⁸¹ See *United States v. Skrmetti*, 605 U.S. 495, 517–22 (2025); see also *infra* PART II.E.

outside doctrinal protection.⁸² The same logic extends to intersectional contexts, where LGBTQ individuals whose regulatory exposure is compounded by poverty, homelessness, or criminal-record status are governed through traits that doctrine declines to recognize.

Skolnik's taxonomy must be understood as diagnostic rather than prescriptive in the U.S. context. It emerges from the Canadian Charter's "analogous grounds" framework, which permits courts to recognize new protected characteristics case by case.⁸³ U.S. doctrine offers no comparable mechanism; the suspect-class inquiry is a closed-ended test the Supreme Court has not extended in decades.⁸⁴ The taxonomy therefore identifies a structural gap in equality doctrine rather than a doctrinal path courts are likely to adopt.

Where Skolnik identifies the gap in the classification of protected traits, Dean Spade's concept of administrative violence identifies the institutional apparatus operating within it. Spade argues that instead of explicit criminal prohibitions, administrative systems are the primary sites through which marginalized populations experience harm through facially neutral mechanisms.⁸⁵ A concrete comparison illustrates the relationship between these frameworks. Consider a transgender woman whose identification documents reflect inconsistent sex markers because different agencies apply different classification criteria.⁸⁶ On Spade's account, the harm lies in the categorization itself: the production of bureaucratic inconsistency through administrative sorting. The status-based regulation framework incorporates that insight but situates it within an integrated legal order: classification rules are agency policy, their enforcement in contexts such as employment verification, travel, or custodial placement is discretionary action authorized by law, and the resulting harms are reviewable (if at all) under equal-protection doctrine that sorts classifications into tiers of scrutiny.⁸⁷

The two frameworks thus point toward different reform strategies. Administrative-violence analysis emphasizes dismantling or restructuring classification systems, while the status-based regulation framework focuses on intervention across multiple legal registers—statutory authorization, agency rules, supervisory practices, and constitutional review—because each layer contributes to the production of the harm.

⁸² Skolnik, *supra* note 35, at 222–23 (explaining that quasi-immutable traits “tend to be highly stigmatized and involve a history of marginalization, stereotyping, and prejudice,” and arguing that recognition of such traits “favors the judicial acceptance of new analogous grounds of discrimination that courts have either rejected or have yet to recognize”).

⁸³ *Andrews v. Law Society of British Columbia*, [1989] 1 S.C.R. 143, 152–53, 174–75 (Can.); *see also* Skolnik, *supra* note 35, at 222–23.

⁸⁴ The four factors derive principally from *Frontiero v. Richardson*, 411 U.S. 677, 684–88 (1973) (plurality opinion), and *San Antonio Independent School District v. Rodriguez*, 411 U.S. 1, 28 (1973). The Court has not extended heightened scrutiny to a new classification since *City of Cleburne v. Cleburne Living Center, Inc.*, 473 U.S. 432 (1985). For analysis, see Susannah W. Pollvogt, *Beyond Suspect Classifications*, 16 U. PA. J. CONST. L. 739, 742 (2014).

⁸⁵ SPADE, *supra* note 54, *passim* (arguing that administrative systems governing identity documents, public benefits, and other bureaucratic processes routinely impose “administrative violence” on transgender and other marginalized people).

⁸⁶ *See id.* at 73–93.

⁸⁷ *See* CURRAH, *supra* note 4, at 76–98, 119–42.

C. Three Domains of Administrative Status Governance

The migration from direct status regulation to administrative status-based regulation is not unique to LGBTQ communities. Three domains illustrate the structural pattern, each involving populations whose identities have been governed through administrative mechanisms after direct constitutional protection narrowed or failed to materialize.

1. Robinson-Line Communities: Homelessness and Addiction

The communities most directly affected by the *Robinson–Powell–Grants Pass* arc, people experiencing homelessness and people with substance-use disorders, now encounter status-based regulation primarily through the administrative mechanisms that *Grants Pass* validated.⁸⁸ Anti-camping ordinances, public-sleeping bans, park-closure rules, and sit-lie ordinances regulate conduct that is, for many individuals, an involuntary incident of their housing status.⁸⁹ Enforcement is characteristically discretionary,⁹⁰ and the regulatory apparatus extends beyond policing to encompass shelter-eligibility rules, identification requirements for service access, and municipal zoning decisions about supportive-housing siting—facially neutral administrative mechanisms that govern homelessness without explicitly targeting the unhoused.⁹¹

The parallels to LGBTQ status-based regulation are structural rather than merely analogical. In both contexts, the regulated population is defined by a characteristic that constitutional doctrine has declined to protect through heightened scrutiny; regulation is formally addressed to conduct or administrative categories rather than to identity; enforcement is discretionary and produces disparate outcomes that track identity; and the resulting harms are difficult to challenge under equal-protection doctrine because they emerge through implementation rather than classification.⁹² The comparison earns its place in the analysis by sharpening what is distinctive about the LGBTQ context: where homelessness is governed primarily through one regulatory register (the post-*Papachristou* ensemble of conduct-specific public-order ordinances), LGBTQ identity is governed through a wider matrix of administrative mechanisms operating simultaneously across permitting, classification, identification, healthcare, and facility-access regimes, with no single doctrinal challenge able to reach the cumulative effect. The *Papachristou–Kolender* vagueness doctrine provides a partial check by constraining the most standardless forms of enforcement discretion, but it does not reach the structured discretion

⁸⁸ City of Grants Pass v. Johnson, 603 U.S. 667, 687–89 (2024).

⁸⁹ Jordy Coutin, *Policing Homelessness: A Review of the Literature on Policing Policies That Target Homelessness and Best Practices for Improving Outcomes*, HOMELESSNESS POL’Y RSCH. INST. (2021), <https://endhomelessness.org/wp-content/uploads/2024/10/Policing-Homelessness-Final.pdf> [<https://perma.cc/JF9B-WZE5>]; Herring, *supra* note 31, *passim*.

⁹⁰ See LIPSKY, *supra* note 46, at 13–16 (explaining that street-level bureaucrats exercise considerable discretion in determining how public policies are applied); Herring, *supra* note 31, at 775–80 (describing how public-order ordinance enforcement is shaped by complaints from businesses and residents rather than by uniform application of legal standards).

⁹¹ See CURRAH, *supra* note 4, at 76–98; SPADE, *supra* note 54, at 73–93.

⁹² In both the homelessness and LGBTQ contexts, equal-protection claims confront the discriminatory-purpose requirement articulated in *Washington v. Davis*, 426 U.S. 229, 239–42 (1976), which demands proof that the decision-maker selected the challenged action “at least in part ‘because of,’ not merely ‘in spite of,’ its adverse effects.” *Personnel Adm’r of Mass. v. Feeney*, 442 U.S. 256, 279 (1979). Facially neutral administrative frameworks rarely yield such proof, even when their practical incidence falls overwhelmingly on an identifiable status group.

embedded in administrative classification and permitting systems that operate under facially adequate statutory authorization.

2. Intersex Bodies: The Medical-Administrative Mode of Status Governance

The governance of intersex bodies provides a historically and institutionally distinct illustration of administrative status governance, one that operates through medical-institutional authority rather than through policing or permitting. Beginning in the mid-twentieth century, clinicians such as John Money and his colleagues developed protocols for assigning sex to infants with atypical genitalia, often relying on surgical intervention and socialization strategies designed to produce stable gender identity within a binary classification system.⁹³ These practices treated sex not as a self-determined status but as an administratively assigned and medically enforced classification, justified in terms of psychological well-being and social integration.⁹⁴ Contemporary scholarship has documented that “sex-normalizing” interventions, often performed in infancy, are associated with significant controversy and evidence of long-term psychological harm.⁹⁵

The intersex case marks the outer boundary of status-based regulation: a domain in which identity is not merely governed through administrative systems but actively produced through institutional authority operating at the level of the body itself. The medical-administrative mode of governance (i.e., clinicians exercising discretionary authority under institutional protocols to make consequential identity-classification decisions) reflects the same structural pattern identified elsewhere in this Article and clarifies how contemporary regulation of gender identity, including restrictions on gender-affirming care for transgender minors, operates through analogous mechanisms.

3. LGBTQ Identities: The Matrix of Administrative Mechanisms

LGBTQ identities are governed through a matrix of administrative mechanisms examined in Parts II through IV, including drag-performance regulation framed as public-decency enforcement, municipal permitting regimes imposing heightened conditions on LGBTQ events, custodial classification systems based on sex designations that may not align with gender identity, identification requirements that produce documentary inconsistency, and public-facility rules governing access to gender-segregated spaces.⁹⁶ These mechanisms share the structural features identified in the homelessness and intersex contexts: they formally regulate conduct or administrative categories rather than identity, operate through discretionary enforcement that produces disparate outcomes, and generate harms that evade equal-protection review because

⁹³ John Money et al., *Hermaphroditism: Recommendations Concerning Assignment of Sex*, 97 BULL. JOHNS HOPKINS HOSP. 284 (1955) [hereinafter Money et al., *Hermaphroditism*]; John Money et al., *Imprinting and the Establishment of Gender Role*, 77 ARCHIVES NEUROLOGY & PSYCHIATRY 333 (1957) [<https://doi.org/10.1001/archneurpsyc.1957.02330330119019>].

⁹⁴ See Money et al., *Hermaphroditism*, *supra* note 93, at 284–86.

⁹⁵ See, e.g., Peter Hegarty, *The Psychology of People with Variable Sex Characteristics/Intersex*, 49 CURRENT OPINION PSYCH. 101539 (2023) [<https://doi.org/10.1016/j.copsyc.2022.101539>]; Luke Muschialli et al., *Perspectives on Conducting “Sex-Normalising” Intersex Surgeries Conducted in Infancy: A Systematic Review*, 4 PLOS GLOB. PUB. HEALTH e0003568 (2024) [<https://doi.org/10.1371/journal.pgph.0003568>].

⁹⁶ See, e.g., ARRAYALES & REDFIELD, *supra* note 45, at 6–27; SPADE, *supra* note 54, at 51–57, 73–93.

they arise through implementation rather than explicit classification. What distinguishes the LGBTQ context is the breadth and simultaneity of these mechanisms, which operate across policing, permitting, corrections, health care, identification, and education so that their effects compound in ways no single doctrinal challenge can fully address.⁹⁷ Together, these patterns reflect a broader shift: as constitutional protections narrowed along the *Robinson–Powell–Grants* Pass arc, administrative mechanisms filled the resulting doctrinal space, and “status-based regulation” names the governance form that operates within it.

D. Status-Based Regulation as a Legal Phenomenon

The concept of *status-based regulation* adds analytic value because it captures regulatory practices that are constituted by statutes, regulations, agency policies, supervisory directives, and on-the-ground discretionary decision-making, yet whose diffusion across these levels means that state action can defy capture by the conventional architecture of equal-protection doctrine. Traditional equal-protection analysis centers on discriminatory classifications, intent, and the appropriate level of scrutiny.⁹⁸ By contrast, status-based regulation identifies a broader field of governance in which identity becomes a trigger for administrative intervention even in the absence of explicit classification or demonstrable discriminatory purpose. Regulatory burdens often emerge through discretionary enforcement, categorical structuring, and bureaucratic decision-making, each of which is a legally authorized act of governance operating under facially neutral rules. The doctrinal gap occurs because of the way the law is organized: heightened judicial scrutiny attaches to text and intent, while discretionary and administrative law, equally legal, operate under far more permissive review.

Three converging traditions support the claim that discretionary and institutional practices are themselves legal. First, the legal pluralism literature has long maintained that normative orders other than formal statute and judicial precedent function as “law” when they regulate conduct through institutional authority and structured expectations.⁹⁹ Second, work in administrative law on the “internal law” of agencies has demonstrated that agency self-generated rules, supervisory practices, and decisional norms operate as a working law of administration even when they are nowhere codified in formal regulation.¹⁰⁰ Third, scholarship on administrative constitutionalism has shown that agencies routinely elaborate constitutional meaning through their statutory implementation work, blurring the line between “law” and “application of law” that judicial-supremacist accounts presuppose.¹⁰¹ The framework developed here does not adopt any of these

⁹⁷ See CURRAH, *supra* note 4, at 7–9, 14–15; SPADE, *supra* note 54, at 51–57; Jenness & Rowland, *supra* note 45, at 285.

⁹⁸ See WILLIAM D. ARAIZA, *ENFORCING THE EQUAL PROTECTION CLAUSE: CONGRESSIONAL POWER, JUDICIAL DOCTRINE, AND CONSTITUTIONAL LAW* (2016).

⁹⁹ See Sally Falk Moore, *Law and Social Change: The Semi-Autonomous Social Field as an Appropriate Subject of Study*, 7 LAW & SOC’Y REV. 719 (1973) [<https://doi.org/10.2307/3052967>]; Sally Engle Merry, *Legal Pluralism*, 22 LAW & SOC’Y REV. 869 (1988) [<https://doi.org/10.2307/3053638>]. The framework adopted in this Article does not require adopting the strong version of legal pluralism that would treat all institutionally structured normative orders as “law”; it requires only the weaker proposition that the discretionary and supervisory practices through which formally enacted law is administered are themselves legal phenomena rather than extralegal facts about implementation.

¹⁰⁰ See JERRY L. MASHAW, *BUREAUCRATIC JUSTICE: MANAGING SOCIAL SECURITY DISABILITY CLAIMS* (1983).

¹⁰¹ See Gillian E. Metzger, *Ordinary Administrative Law as Constitutional Common Law*, 110 COLUM. L. REV. 479 (2010); Bertrall L. Ross II, *Embracing Administrative Constitutionalism*, 95 B.U. L. REV. 519 (2015).

literatures wholesale; it draws on them to support the more limited claim that the discretionary and institutional practices through which status-based regulation operates are legal artifacts whose study is properly part of legal analysis rather than a sociological adjunct to it.

The *Robinson–Powell–Grants Pass* arc, traced in Part I.A, illustrates this organization from the Eighth Amendment side; the equal-protection analysis developed in Part II illustrates it from the Fourteenth Amendment side. In both doctrinal domains, constitutional doctrine is calibrated for explicit, text-based, classification-driven regulation that contemporary administrative governance has substantially superseded.

With this framework in place, the Article turns to contemporary disputes in which status-based regulation operates through administrative governance and discretionary enforcement. Foucault’s account of normalization, Currah’s analysis of bureaucratic sex classification, and Yoshino’s covering thesis together explain how formally neutral policies produce unequal outcomes at systemic, institutional, and individual levels.¹⁰² Queer criminology shows how identity is policed in practice, while constitutional law defines the terms of contestation.¹⁰³ Considered together, however, these perspectives reveal a single dynamic: doctrinal shifts toward discriminatory-purpose requirements and deferential review both reflect and incentivize the rise of facially neutral, discretion-based regulation.

E. Intersectionality as a Methodological Commitment

Status-based regulation does not operate uniformly across LGBTQ populations, and any account that treats it as if it did will misdescribe both the distribution of regulatory exposure and the institutional logics that produce it. Building on Kimberlé Crenshaw’s foundational work, and adopting a structural rather than merely additive account of intersectionality, contemporary queer criminology has emphasized that race, class, gender identity, immigration status, and disability do not merely add to one another but interact, producing distinct forms of regulatory contact not captured by single-axis analysis.¹⁰⁴ This Article, therefore, treats intersectionality as a methodological commitment rather than a refinement. The same permitting regime can be a low-grade inconvenience for one LGBTQ subgroup and serious criminal-legal exposure for another, and the same custodial classification policy can produce manageable friction for some incarcerated transgender people and severe physical danger for others.

A clarification on usage is warranted before the analysis proceeds. This Article deploys intersectionality in two distinct registers, and the discussion below preserves the distinction. As a structural analytic lens, intersectionality identifies how multiple regulatory systems interact to produce compound harms; as an empirical claim, it identifies differential rates of regulatory

¹⁰² See CURRAH, *supra* note 4; YOSHINO, *supra* note 62; Foucault, *supra* note 50.

¹⁰³ See, e.g., BUIST & LENNING, *supra* note 27, at 36–41; MOGUL ET AL., *supra* note 27, at 41–45.

¹⁰⁴ See Kimberlé Crenshaw, *Demarginalizing the Intersection of Race and Sex: A Black Feminist Critique of Antidiscrimination Doctrine, Feminist Theory and Antiracist Politics*, 1989 U. CHI. LEGAL F. 139, 139–52 [hereinafter Crenshaw, *Demarginalizing the Intersection*]; Kimberlé Crenshaw, *Mapping the Margins: Intersectionality, Identity Politics, and Violence Against Women of Color*, 43 STAN. L. REV. 1241, 1244–65 (1991) [hereinafter Crenshaw, *Mapping the Margins*] (extending the framework to demonstrate how the convergence of race and gender shapes both the structure of state violence and the institutional response to it); see also BUIST & LENNING, *supra* note 27, at 21–23 (treating intersectionality as a core analytical framework for understanding how criminal-legal institutions affect LGBTQ individuals).

contact across intersectional locations.¹⁰⁵ The structural lens does most of the framework’s analytic work; the empirical claim is supported by existing evidence for some intersections more strongly than others, and the analysis flags the difference where it matters.¹⁰⁶

Jessica Clarke has shown how formal legal categories and regulatory practices shape the recognition and limits of identity claims, suggesting that the law’s reliance on fixed classifications can legitimize systems of inequality.¹⁰⁷ When administrative systems classify individuals along a single axis (e.g., sex, gender identity, housing status), they obscure the compound vulnerabilities that determine how classification operates in practice. A transgender woman of color navigating custodial classification faces not merely the regulatory burden of sex-based housing assignment but the compounding effects of racial profiling in initial police contact, poverty-driven inability to secure legal representation, and immigration-status vulnerabilities that foreclose administrative remedies available to citizens. These are not additive disadvantages; they are structurally produced by the interaction of multiple regulatory systems, each of which is itself a site of status-based governance.

The implications for the analysis that follows are concrete. Part II’s doctrinal survey examines how courts have addressed identity-based regulation, but the doctrinal framework’s single-axis orientation systematically obscures the compound harms that intersectional analysis reveals. Part III’s institutional analysis traces how discretion operates in practice, but discretionary enforcement is not exercised uniformly across LGBTQ populations; it concentrates on those whose intersectional locations render them most visible to administrative authority.

II. CURRENT STATE OF LITIGATION AND LEGAL CONTESTATION

The contemporary legal landscape surrounding the regulation of LGBTQ people and communities is marked by a fragmented network of statutes, administrative practices, and litigation. Modern disputes increasingly arise from laws framed in seemingly innocuous ways, such as public decency, safety, or child protection, but are enforced in ways that disproportionately affect LGBTQ individuals and spaces. This Part examines each regulatory domain as an integrated phenomenon, presenting the doctrinal contestation and the institutional dynamics together.

A. *Public Expression and Moral Regulation*

One of the most visible areas of litigation involves state laws regulating drag performances under the guise of protecting minors. In *Southern Utah Drag Stars v. City of St. George*,¹⁰⁸ a federal district court held that drag performances are “indisputably protected speech” under the First Amendment, rejecting the city’s attempt to equate drag with obscenity and emphasizing

¹⁰⁵ For the canonical methodological discussion of intersectionality’s distinct registers—anticategorical, intracategorical, and intercategorical—see Leslie McCall, *The Complexity of Intersectionality*, 30 SIGNS 1771, 1773–80 (2005) [<https://doi.org/10.1086/426800>]. The distinction drawn in the text between intersectionality as a structural lens and as an empirical claim parallels, but does not exactly track, McCall’s typology.

¹⁰⁶ See Greta R Bauer et al., *Intersectionality in Quantitative Research: A Systematic Review of Its Emergence and Applications of Theory and Methods*, 14 SSM – POPULATION HEALTH 100798 (2021). (documenting the uneven distribution of empirical evidence across intersectional locations).

¹⁰⁷ See Jessica A. Clarke, *Identity and Form*, 103 CALIF. L. REV. 747 (2015).

¹⁰⁸ 677 F. Supp. 3d 1252 (D. Utah 2023).

testimony that drag is an artistic and expressive medium conveying social and political messages about gender identity and acceptance.¹⁰⁹

Litigation over Florida’s “adult live performance” statute produced significant appellate rulings. The Eleventh Circuit sustained a district court’s grant of preliminary injunctive relief, emphasizing that the statute’s vague language risked suppressing constitutionally protected expression, particularly performances associated with LGBTQ communities.¹¹⁰ Although that panel decision was vacated pending rehearing *en banc* and, therefore, lacks precedential effect,¹¹¹ its reasoning illustrates how even facially content-neutral public-morality statutes can operate in practice as mechanisms for regulating gender expression and community visibility.

Other federal district courts have directly rejected legislative drag bans as unconstitutional. In *Imperial Sovereign Court of Montana v. Knudsen*, the court restrained enforcement of a statute criminalizing certain “sexually oriented shows,” finding that the law functioned as a content-based restriction that targeted drag performers and relied on impermissible identity-based distinctions.¹¹² Similarly, in *Woodlands Pride, Inc. v. Paxton*, a federal district court concluded that Texas’s ban on “sexually oriented performances” on public property or in the presence of minors was an overly broad and content-based restriction that failed to satisfy the *Miller* obscenity standard and impermissibly burdened constitutionally protected expression.¹¹³ On appeal, the Fifth Circuit vacated the district court’s injunction and remanded on standing grounds, leaving the ultimate First Amendment validity of the statute unresolved.¹¹⁴

A similar outcome occurred in a case challenging a law in Tennessee that a district court enjoined from enforcement on vagueness and overbreadth grounds.¹¹⁵ On appeal, the Sixth Circuit disposed of the case on procedural grounds and, therefore, did not adjudicate the vagueness claim.¹¹⁶ However, both the district court and a judge who dissented from the dismissal on standing grounds noted the statute’s breadth and the uncertainty it created for performers and enforcement authorities, leaving its application largely dependent on local discretion.¹¹⁷ These concerns echo longstanding constitutional limits on public-morality regulation, particularly where broadly worded laws invite arbitrary enforcement.¹¹⁸

¹⁰⁹ *Id.* at 1286.

¹¹⁰ HM Fla.-ORL, LLC v. Governor of Fla., 137 F.4th 1207 (11th Cir. 2025), *reh’g en banc granted, opinion vacated sub nom.* HM Fla.-ORL, LLC v. Sec’y of Fla. Dep’t of Bus. & Prof’l Regul., 160 F.4th 1282 (11th Cir. 2025).

¹¹¹ *See id.*

¹¹² 684 F. Supp. 3d 1095, 1100 (D. Mont. 2023).

¹¹³ 694 F. Supp. 3d 820, 847–48 (S.D. Tex. 2023), *vacated and remanded*, 168 F.4th 293 (5th Cir. 2026).

¹¹⁴ *Woodlands Pride*, 168 F.4th at 301–07.

¹¹⁵ *Friends of George’s, Inc. v. Mulroy*, 675 F. Supp. 3d 831, 873–77 (W.D. Tenn. 2023), *rev’d and remanded on other grounds*, 108 F.4th 431, 436–38 (6th Cir. 2024).

¹¹⁶ *Friends of George’s, Inc.*, 108 F.4th at 436–38 (holding that a theater organization in which drag shows were performed lacks standing to bring a pre-enforcement action).

¹¹⁷ *Friends of George’s, Inc.*, 675 F. Supp. 3d at 857–58; *Friends of George’s, Inc.*, 108 F.4th at 451–52.

¹¹⁸ *See, e.g.*, *Papachristou v. City of Jacksonville*, 405 U.S. 156, 163–64 (1972) (noting that vague language in a vagrancy statute could reach routine “nightwalking” by people with insomnia and “loafing” for relaxation).

The doctrinal picture, however, captures only part of the regulatory dynamic. The same statutes that courts have evaluated for vagueness and overbreadth operate on the ground through discretionary enforcement shaped by community complaints, local political pressures, and institutional norms about gender presentation.¹¹⁹ Contemporary gender policing frequently relies on indeterminate standards that enable discretionary enforcement, allowing local authorities to respond to social pressures and community norms rather than clear legal criteria.¹²⁰ Enforcement of public-decency standards is frequently uneven, with interventions ranging from permit denials to increased police presence that discourage public participation and reinforce perceptions that LGBTQ expression is inherently suspect.¹²¹ These patterns align with historical practices of vice policing, in which law enforcement monitored spaces associated with sexual and gender nonconformity.¹²²

When such enforcement is experienced as identity-targeted rather than conduct-based, it initiates what this Article terms a *procedural-justice cascade*. This concept is offered as a theorized reinforcing dynamic that organizes existing findings rather than as an empirically validated causal chain: regulatory scrutiny diminishes perceived neutrality; diminished neutrality reduces institutional trust; reduced trust suppresses reporting and cooperation; and suppressed cooperation undermines public-safety outcomes.¹²³ The sequential framing is heuristic, but the components of the dynamic are documented in the procedural-justice and policing literatures. Research consistently documents that LGBTQ individuals who experience negative police encounters report diminished trust and reduced willingness to seek police assistance in the future.¹²⁴ The resulting disengagement is not merely an individual response but a community-level phenomenon that reshapes the relationship between LGBTQ populations and the institutions nominally charged with their protection.

When such enforcement patterns disproportionately affect LGBTQ individuals or communities, they may implicate the constitutional framework governing discriminatory purpose—the doctrinal rule that a facially neutral law violates equal protection only if a court finds it was *adopted* with a discriminatory motive, and that disparate impact alone is not enough to make that showing.¹²⁵ That motive-centered framework is the central doctrinal hurdle for challenges to status-based regulation, because the rules at issue are rarely written in identity-explicit terms.

¹¹⁹ See BUIST & LENNING, *supra* note 27, at 36–41, 91–97.

¹²⁰ Note, *Drag Queens, the First Amendment, and Expressive Harms*, 137 HARV. L. REV. 1469 (2024).

¹²¹ See BUIST & LENNING, *supra* note 27, at 91–97.

¹²² See Eskridge, *supra* note 43, at 1025–26, 1032–38, 1040, 1067–70 (tracing vice enforcement); MOGUL ET AL., *supra* note 27, at 41–45 (documenting how vice squads routinely surveilled and raided spaces associated with sexual and gender nonconformity, including bars, parks, and public meeting places).

¹²³ See TYLER, *supra* note 59, at 4–7, 115–18; Miles-Johnson, *supra* note 59, at 687–88.

¹²⁴ See SOMJEN FRAZER ET AL., LAMBDA LEGAL, BLACK AND PINK, & STRENGTH IN NUMBERS CONSULTING, PROTECTED AND SERVED? (2023), https://static1.squarespace.com/static/62618573e937d62bddbf367d/t/646d326d98eb7343d67c91ab/1684877933977/Protected_and_Served_report.pdf [<https://perma.cc/253F-CZPX>]; Jordan Grasso et al., *Policing Progress: Findings from a National Survey of LGBTQ+ People's Experiences with Law Enforcement*, AM. CIVIL LIBERTIES UNION (2024), <https://assets.aclu.org/live/uploads/2024/04/ACLU-Policing-Progress.pdf> [<https://perma.cc/7YJ6-H55K>].

¹²⁵ See *Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252, 265 (1977).

A second hurdle compounds the first. Equal-protection doctrine sorts classifications into tiers of judicial scrutiny: race-based and certain other “suspect” classifications receive strict scrutiny, sex-based classifications receive intermediate scrutiny, and everything else receives only rational basis review, a deferential standard the government almost always satisfies.¹²⁶ Despite the potential relevance of heightened scrutiny in cases involving sex-based or identity-based classifications, courts have historically been reluctant to treat discrimination against LGBTQ individuals as warranting anything more than rational basis review. *Romer v. Evans*, in which the U.S. Supreme Court struck down Colorado’s Amendment 2, illustrates that point.¹²⁷ The Court invalidated the law but did so under rational basis rather than by formally elevating the standard of scrutiny for LGBTQ-related classifications.¹²⁸ The case has come to stand for what scholars call “rational basis with bite,” a posture in which the Court applies the deferential standard with unusual rigor without conceding that LGBTQ classifications warrant anything more.¹²⁹

The integration of doctrinal and institutional analysis reveals what neither perspective captures alone. Together, they reveal that the constitutional injury and the enforcement architecture are registers of the same legal phenomenon: statutes that survive facial challenge may nonetheless produce identity-based regulation through the discretionary apparatus they authorize.

B. Municipal Permitting and Administrative Governance

A second domain of status-based regulation involves municipal permitting and regulatory authority over LGBTQ public events. The dispute in *Naples Pride v. City of Naples* illustrates how local governments use administrative mechanisms—security assessments, permit conditions, and fee structures—to regulate LGBTQ assembly.¹³⁰ When Naples Pride sought a permit to host its annual festival in the city’s premier downtown public space, officials deemed the event “controversial” and imposed conditions and a security-fee estimate exceeding \$30,000, burdens not applied to comparable gatherings.¹³¹ These practices reflect longstanding

¹²⁶ Equal-protection doctrine evaluates government classifications under one of three standards depending on the classification at issue. Strict scrutiny applies to classifications based on race, national origin, or alienage, and to laws burdening fundamental rights; the government must show the classification is narrowly tailored to a compelling state interest. *See, e.g.,* *Loving v. Virginia*, 388 U.S. 1, 11 (1967) (race). Intermediate scrutiny applies to classifications based on sex and to certain other classifications; the government must show that the classification is substantially related to an important governmental interest. *See, e.g.,* *United States v. Virginia*, 518 U.S. 515, 533 (1996). All other classifications receive only rational basis review, under which a law will be upheld so long as it is rationally related to a legitimate government interest. *See, e.g.,* *FCC v. Beach Commc’ns, Inc.*, 508 U.S. 307, 313–15 (1993); *Heller v. Doe*, 509 U.S. 312, 319–20 (1993). The Supreme Court has never formally held that sexual-orientation classifications trigger heightened scrutiny, although several federal circuits have applied heightened scrutiny in particular contexts. *See, e.g.,* *SmithKline Beecham Corp. v. Abbott Lab’ys*, 740 F.3d 471, 481–84 (9th Cir. 2014); *Windsor v. United States*, 699 F.3d 169, 181–85 (2d Cir. 2012), *aff’d on other grounds*, 570 U.S. 744 (2013).

¹²⁷ 517 U.S. 620, 632–35 (1996).

¹²⁸ *Id.* at 635.

¹²⁹ *Id.*; *see also* Gayle Lynn Pettinga, Note, *Rational Basis with Bite: Intermediate Scrutiny by Any Other Name*, 62 IND. L.J. 779, 780 (1987); Raphael Holoszyk-Pimentel, Note, *Reconciling Rational-Basis Review: When Does Rational Basis Bite?*, 90 N.Y.U. L. REV. 2070 (2015).

¹³⁰ No. 2:25-cv-291, 2025 WL 1370174 (M.D. Fla. May 12, 2025), *stay granted*, No. 25-11756, 2025 WL 2382975 (11th Cir. June 6, 2025), *appeal dismissed*, 2025 WL 2433657 (11th Cir. June 16, 2025).

¹³¹ *See id.* at *2–5.

constitutional concerns with discretionary licensing schemes that enable content- or viewpoint-based regulation under the guise of administrative neutrality.¹³²

The district court granted a preliminary injunction against indoor-only and adults-only restrictions, finding that part of the security-fee estimate was likely content- and viewpoint-based, while declining to enjoin the fee itself.¹³³ The Eleventh Circuit later stayed the injunction, but the case was ultimately settled and dismissed on appeal.¹³⁴

Doctrinally, the dispute sits at the intersection of three First Amendment frameworks. First, the indoor-only and adults-only conditions implicate content-based regulation of protected expression: the district court treated drag performance as inherently expressive, triggering heightened scrutiny when restrictions target its content rather than impose neutral time, place, and manner limits.¹³⁵ Second, the security-fee structure implicates *Forsyth County v. Nationalist Movement*, which invalidated ordinances allowing officials to vary fees based on anticipated public reaction, because doing so requires assessing a message and predicting hostility.¹³⁶ Third, the permitting scheme implicates the unbridled-discretion doctrine, under which regimes granting standardless authority over expressive activity are facially invalid due to their censorship risk.¹³⁷

An institutional analysis reframes the same facts by asking how these conditions were produced: through what discretionary judgments, by which actors, and under what authority. In Naples Pride, decision-making was distributed across multiple sites. The City Council ratified permit conditions; the Naples Police Department generated the security estimate based on personnel needs; and municipal staff applied a fee-calculation methodology revised in connection with a new police-services contract and changes in cost allocation.¹³⁸ Each decision reflects legally authorized discretion, structured by internal policy and reviewed under deferential standards that presume administrative regularity.

On its face, the system appears neutral. The fee methodology does not reference identity; the permit conditions invoke public safety and child welfare; and officials can point to similar estimates for non-LGBTQ events.¹³⁹ Yet the institutional analysis reveals how identity-based regulation operates within this framework. City Council deliberations responded to constituent opposition tied to the festival's LGBTQ content; police estimates incorporated assumptions about counter-protest activity shaped by the event's message; and permit conditions singled out

¹³² See *Shuttlesworth v. City of Birmingham*, 394 U.S. 147, 150 (1969).

¹³³ *Naples Pride*, 2025 WL 1370174, at *17 (granting preliminary injunction as to the indoor-only and adults-only restrictions); *id.* at *14 (finding Naples Pride substantially likely to show that a portion of the security-fee estimate is viewpoint- and content-based but declining to enjoin the estimate as exceeding what was required at the preliminary-injunction stage).

¹³⁴ *Naples Pride v. City of Naples*, No. 25-11756, 2025 WL 2382975 (11th Cir. June 6, 2025) (granting stay of preliminary injunction), *appeal dismissed*, 2025 WL 2433657 (11th Cir. June 16, 2025).

¹³⁵ See *Naples Pride*, 2025 WL 1370174, at *9.

¹³⁶ *Forsyth Cnty. v. Nationalist Movement*, 505 U.S. 123, 134–35 (1992).

¹³⁷ *City of Lakewood v. Plain Dealer Publ'g Co.*, 486 U.S. 750, 755–56 (1988).

¹³⁸ See *Naples Pride*, 2025 WL 1370174, at *4–5, *13–14.

¹³⁹ *Id.* at *5 (noting comparable security-fee estimate of approximately \$33,070 for the Cars on 5th festival).

drag performance rather than imposing comparable restrictions across events.¹⁴⁰ Identity thus functions as an organizing variable, even absent explicit classification.

Each analytical approach captures different aspects of the problem. Doctrinal analysis identifies viewpoint discrimination where cases like *Forsyth* convert hostile-audience considerations into constitutional injury, but it is less equipped to address the institutional structures that enable such outcomes. Institutional analysis exposes the discretionary architecture but cannot, by itself, determine when that architecture becomes constitutionally impermissible.

Taken together, the two perspectives reveal that the constitutional injury and the institutional structure are not separate phenomena but two aspects of the same legal order. The fee structure subject to *Forsyth* scrutiny is produced by the same discretionary processes that institutional analysis describes; the unbridled-discretion problem identified in First Amendment doctrine corresponds to the administrative mechanisms through which status-based regulation operates. Reforms that address only one dimension, litigating a *Forsyth* claim without altering the underlying administrative system, or revising internal policies without reference to constitutional standards, are therefore incomplete.

The *Naples Pride* dispute is illustrative rather than exceptional. LGBTQ events are more likely to be labeled controversial or high-risk, leading to increased fees, heightened surveillance, and restrictive conditions.¹⁴¹ Contemporary policing increasingly relies on regulatory strategies that blur the line between criminal enforcement and administrative management, shaping access to public space through ostensibly neutral rules.¹⁴² In this context, discretionary authority allows officials to regulate visibility and participation in ways that respond to community hostility or identity-based assumptions rather than to legitimate public-safety concerns, raising constitutional concerns even where formal classifications are absent.¹⁴³

C. Custodial Policies and Institutional Regulation

Litigation concerning gender identity in custodial settings represents a third major domain of status-based regulation. Challenges to the denial of gender-affirming medical care and the classification of transgender detainees reflect broader disputes over how far correctional policies may restrict identity expression under the guise of security and institutional management.

Courts have long recognized that prison officials must balance institutional security with the obligation to provide adequate medical care and protection from harm.¹⁴⁴ In the context of transgender incarceration, that balance is especially contested, as policies denying gender-affirming care or housing accommodations may increase vulnerability while being justified as necessary for institutional order.

¹⁴⁰ See *id.* at *2–3, *13–14.

¹⁴¹ BUIST & LENNING, *supra* note 27, at 91–96; Andy Holmes, *Marching with Pride? Debates on Uniformed Police Participating in Vancouver's LGBTQ Pride Parade*, J. HOMOSEXUALITY (2019) [<https://doi.org/10.1080/00918369.2019.1696107>].

¹⁴² See Peter Gill, *Policing and Regulation: What Is the Difference?*, 11 SOC. & LEGAL STUD. 523 (2002) [<https://doi.org/10.1177/096466390201100403>].

¹⁴³ *Forsyth Cnty. v. Nationalist Movement*, 505 U.S. 123, 134–36 (1992).

¹⁴⁴ *Estelle v. Gamble*, 429 U.S. 97, 103–04 (1976) (medical care); *Farmer v. Brennan*, 511 U.S. 825, 833 (1994) (protection).

In *Kingdom v. Trump*, plaintiffs challenged categorical restrictions on medical care and housing placement in federal facilities, arguing that such policies exposed transgender detainees to heightened risks of harm and discrimination.¹⁴⁵ In granting a preliminary injunction against a presidential executive order, the district court emphasized the need for individualized assessments and identified potential equal-protection concerns where policies single out transgender detainees for differential treatment.¹⁴⁶

As of this writing, *Kingdom* remains pending, as do similar challenges to state laws. In *Benjamin v. Oliver*, for example, a federal district court struck down part of a Georgia law prohibiting gender-affirming care for incarcerated individuals.¹⁴⁷ The court permanently enjoined the statute, holding that its categorical ban on hormone therapy and related treatments, while permitting the same interventions for other medical conditions, violated the Eighth Amendment by denying medically necessary care based on status rather than clinical need.¹⁴⁸

Although the constitutional framework requires individualized assessment,¹⁴⁹ empirical research demonstrates a persistent gap between doctrine and practice. Jenness and Rowland's synthesis shows that these dynamics are not confined to individual institutions but reflect system-wide inequalities shaping transgender people's interactions with policing, courts, and corrections.¹⁵⁰ Within custodial environments, studies consistently find that transgender inmates face elevated risks of victimization, demographic vulnerability, and ongoing negotiation of gender authenticity within carceral cultures.¹⁵¹ Jenness and Fenstermaker's work further demonstrates that institutional actors exercise discretionary authority through judgments about gender presentation, embedding normative assumptions about sex and order into classification and treatment decisions.¹⁵²

Additional research shows how institutional policies, from housing assignments to disciplinary regimes, structure daily life in ways that can exacerbate risk and constrain identity expression,¹⁵³ even where policies are formally neutral or framed as protective. These practices,

¹⁴⁵ No. 1:25-cv-00691, 2025 WL 1568238 (D.D.C. June 3, 2025).

¹⁴⁶ *Id.* at *16.

¹⁴⁷ 812 F. Supp. 3d 1322 (N.D. Ga. 2025).

¹⁴⁸ *Id.* at 1330–31.

¹⁴⁹ *See id.* at 1334 (noting that “healthcare decisions for prisoners to be made dispassionately, by physicians, based on individual determinations of medical need, and for reasons beyond the fact that the prisoners are prisoners”).

¹⁵⁰ *See* Jenness & Rowland, *supra* note 45, at 284–86, 290–92 (reviewing research showing that transgender people encounter layered and cumulative inequalities throughout the criminal legal system).

¹⁵¹ *See, e.g.,* Lori Sexton et al., *Where the Margins Meet: A Demographic Assessment of Transgender Inmates in Men's Prisons*, 27 JUST. Q. 835 (2010) [<https://doi.org/10.1080/07418820903419010>]; Valerie Jenness & Sarah Fenstermaker, *Agnes Goes to Prison: Gender Authenticity, Transgender Inmates in Prisons for Men, and the Pursuit of “the Real Deal,”* 28 GENDER & SOC'Y 5 (2014) [<https://doi.org/10.1177/0891243213499446>].

¹⁵² Jenness & Fenstermaker, *supra* note 151, at 12–13.

¹⁵³ Valerie Jenness, *From Policy to Prisoners to People: A “Soft-Mixed Methods” Approach to Studying Transgender Prisoners*, 39 J. CONTEMP. ETHNOGRAPHY 517 (2010) [<https://doi.org/10.1177/0891241610375823>].

including those intended to mitigate sexual victimization, often reproduce the very vulnerabilities they seek to address.¹⁵⁴

The integration of doctrinal and empirical perspectives clarifies the underlying structure. The Eighth Amendment's deliberate-indifference framework, articulated in *Estelle v. Gamble* and applied in *Benjamin*, requires individualized medical assessment and prohibits categorical exclusions from care based on identity.¹⁵⁵ Yet empirical evidence reveals institutional environments in which classification and treatment decisions are routinely shaped by discretionary judgments informed by normative assumptions about gender.¹⁵⁶ The resulting gap between doctrinal mandate and institutional practice is not simply a failure of compliance but a structural feature of a legal system in which constitutional standards are articulated at a high level of generality and implemented through administrative systems whose discretionary operations are only weakly constrained.¹⁵⁷

These dynamics are not evenly distributed. They fall most heavily on transgender women of color and on incarcerated LGBTQ individuals whose race, poverty, or prior criminal-legal contact already shapes how correctional authorities perceive risk and exercise discretion.¹⁵⁸ Correctional institutions thus function as sites of intensified identity regulation, where security rationales justify practices that would be impermissible in other contexts.¹⁵⁹ Classification systems, medical-care policies, and housing decisions operate as mechanisms through which identity is recognized, constrained, or rendered invisible; each constitutes a legally authorized exercise of administrative discretion operating under facially neutral rules.

D. Regulation of Public Facilities and Everyday Encounters

The expansion of gender-identity legislation into everyday spaces represents a further manifestation of status-based regulation. Since 2021, numerous states have enacted or proposed statutes regulating restroom use, gender markers, and participation in gender-segregated

¹⁵⁴ Valerie Jenness, *The Social Ecology of Sexual Victimization Against Transgender Women Who Are Incarcerated: A Call for (More) Research on Modalities of Housing and Prison Violence*, 20 CRIMINOLOGY & PUB. POL'Y 3 (2021) [<https://doi.org/10.1111/1745-9133.12540>] [hereinafter Jenness, *Social Ecology*].

¹⁵⁵ *Estelle v. Gamble*, 429 U.S. 97, 104–05 (1976) (holding that deliberate indifference to serious medical needs of prisoners constitutes cruel and unusual punishment); *Benjamin v. Oliver*, 812 F. Supp. 3d 1322, 1330–31 (N.D. Ga. 2025) (applying the deliberate-indifference framework to strike down a categorical ban on gender-affirming care for incarcerated individuals).

¹⁵⁶ See Jenness & Fenstermaker, *supra* note 151, at 12–13; Jenness, *Social Ecology*, *supra* note 154, at 5–7.

¹⁵⁷ See LIPSKY, *supra* note 46, at 13–16; MASHAW, *supra* note 100, at 24–30.

¹⁵⁸ Jenness & Fenstermaker, *supra* note 151, at 12–13; Sexton et al., *supra* note 151, at 838–39, 841–43.

¹⁵⁹ Tom Kemp & Philippa Tomczak, *The Cruel Optimism of International Prison Regulation: Prison Ontologies and Carceral Harms*, 49 LAW & SOC. INQUIRY 1683 (2024) [<https://doi.org/10.1017/lsi.2023.63>]; Thomas J. Schmid & Richard S. Jones, *Suspended Identity: Identity Transformation in a Maximum Security Prison*, 14 SYMBOLIC INTERACTION 415 (1991) [<https://doi.org/10.1525/si.1991.14.4.415>].

spaces.¹⁶⁰ These measures prompted immediate civil-rights challenges, producing a patchwork of injunctions, appellate rulings, and ongoing trials across jurisdictions.¹⁶¹

These disputes frequently center on equal-protection claims, as plaintiffs argue that such laws target transgender individuals for differential treatment without sufficient justification. Courts have grappled with issues of discriminatory intent, disparate impact, and the appropriate level of scrutiny for gender-identity classifications that are largely rooted in case law that requires drawing analogies from other classifications, such as race and sex.¹⁶² The resulting jurisprudence remains unsettled, as the Supreme Court's recent decision in *United States v. Skrametti*, discussed below, illustrates most sharply.¹⁶³

The doctrinal uncertainty, however, tells only half the story. These laws extend regulatory authority into contexts traditionally considered private or personal, and their enforcement involves decentralized actors (e.g., school officials, employers, and local law enforcement) who produce varied patterns of intervention across jurisdictions.¹⁶⁴ Enforcement often falls to local authorities, school officials, and private actors, producing varied patterns of implementation across institutions.¹⁶⁵ These interactions illustrate how regulatory frameworks can transform ordinary encounters like entering a restroom, using identification documents, and participating in educational activities, into sites of scrutiny and control, reinforcing pressures to conform to dominant norms.¹⁶⁶

The institutional dynamics operating in this domain share the structural features identified in the preceding sections, including discretionary enforcement, facially neutral framing, and identity-sensitive outcomes. They differ, however, in one critical respect: the sheer breadth and simultaneity of regulatory contact. Laws governing restroom access, identification documents, and participation in gender-segregated activities extend regulatory authority into contexts traditionally considered private or personal, subjecting LGBTQ individuals to increased surveillance and scrutiny across multiple institutional domains simultaneously.¹⁶⁷

¹⁶⁰ See *Equality Maps: Bans on Transgender People's Use of Public Bathrooms & Facilities According to Their Gender Identity*, MOVEMENT ADVANCEMENT PROJECT, https://www.mapresearch.org/equality-maps/nondiscrimination/bathroom_bans [<https://perma.cc/KF8S-Z7BL>] (last visited Mar. 14, 2026).

¹⁶¹ See STATELINE, *supra* note 45; *Lawsuit Filed Challenging Kansas Bathroom and ID Law*, KCUR [NPR Kan. City] (Mar. 3, 2026), <https://www.kcur.org/politics-elections-and-government/2026-03-03/kansas-transgender-id-bathroom-law-court-lawsuit-aclu> [<https://perma.cc/AT3G-2BJN>].

¹⁶² See, e.g., *Bostock v. Clayton Cnty.*, 590 U.S. 644 (2020); *United States v. Virginia*, 518 U.S. 515 (1996); *Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252 (1977).

¹⁶³ 605 U.S. 495 (2025).

¹⁶⁴ CURRAH, *supra* note 4, at 7–9, 14–15 (explaining that because different state institutions apply their own rules for classifying sex depending on their regulatory functions, they produce inconsistent and decentralized implementation across agencies).

¹⁶⁵ See *id.*; SPADE, *supra* note 54, at 51–57 (explaining that gender regulation occurs through decentralized administrative systems—including schools, welfare agencies, prisons, and identification regimes—that produce uneven enforcement across institutions).

¹⁶⁶ YOSHINO, *supra* note 62, *passim*.

¹⁶⁷ BUIST & LENNING, *supra* note 27, at 91–95; Jenness & Rowland, *supra* note 45, at 284–87.

This cumulative regulatory exposure activates the psychological dynamics that minority stress theory identifies.¹⁶⁸ When regulatory encounters such as questioning at public events, scrutiny over facility access, and repeated identification challenges, are experienced as identity-driven rather than conduct-based, they function as institutional stressors whose effects compound over time.¹⁶⁹

As Buist and Lenning note, such experiences reinforce perceptions of surveillance and exclusion, contributing to broader patterns of mistrust and disengagement from public institutions that further undermine institutional legitimacy.¹⁷⁰ The procedural-justice cascade theorized in Part II.A has a distinctive feature in this domain:¹⁷¹ because the regulatory contact points are dispersed across multiple institutional actors and settings, any erosion of trust is not confined to any single agency but extends to the broader apparatus of public governance.

Doctrinally, the breadth of regulatory contact compounds the challenges identified in the preceding sections. Equal-protection doctrine's single-axis orientation of asking whether a particular classification targets sex, or transgender status, or some other category, is poorly suited to capture harms that emerge from the simultaneous operation of multiple regulatory systems, each facially neutral, each administered by different institutional actors, and each producing identity-sensitive outcomes through discretionary implementation rather than explicit classification.¹⁷² The discriminatory-purpose requirement poses an additional obstacle: when regulatory friction is distributed across decentralized actors operating under separate enabling authorities, no single decision-maker's intent can be identified as the source of the cumulative burden, even when the aggregate effect is a regulatory environment organized around identity.¹⁷³

E. Skrametti and the Doctrinal Limits of Equal Protection

1. What Skrametti Held

The doctrinal uncertainty surveyed in the preceding sections came to a head in *United States v. Skrametti*, in which the Supreme Court addressed whether state restrictions on gender-affirming medical care for transgender minors trigger heightened scrutiny.¹⁷⁴ The case involved a Tennessee law that prohibited healthcare providers from prescribing puberty blockers or hormones to minors for the purpose of aligning their physical characteristics with a gender identity different from their biological sex while permitting the same treatments for other

¹⁶⁸ Ilan H. Meyer, *Minority Stress and Mental Health in Gay Men*, 36 J. HEALTH & SOC. BEHAV. 38 (1995) [<https://doi.org/10.2307/2137286>] [hereinafter I. Meyer, *Minority Stress*].

¹⁶⁹ See I. Meyer, *Minority Stress*, *supra* note 168, at 676–77; Stefan Vogler, *Police Contact and Self-Rated Health Among LGBTQ and Non-LGBTQ People*, 394 SOC. SCI. & MED., art. 119088 (2026) [<https://doi.org/10.1016/j.socscimed.2026.119088>].

¹⁷⁰ BUIST & LENNING, *supra* note 27, at 91–95.

¹⁷¹ Again, this is a heuristic dynamic rather than an empirically validated causal chain. See *supra* notes 123–124 and accompanying text.

¹⁷² See Crenshaw, *Demarginalizing the Intersection*, *supra* note 104, at 151–52 (arguing that antidiscrimination law's "single-axis framework," which treats neutrality as the baseline, systematically fails to capture the disproportionate burdens borne by people at multiple intersections of marginalization).

¹⁷³ See *Washington v. Davis*, 426 U.S. 229, 239–42 (1976); *Personnel Adm'r of Mass. v. Feeney*, 442 U.S. 256, 279 (1979).

¹⁷⁴ *United States v. Skrametti*, 605 U.S. 495, 510 (2025).

medical conditions.¹⁷⁵ In a six-to-three decision, the Court held that the law did not classify on any basis warranting heightened scrutiny: its distinctions, the majority reasoned, were properly understood as turning on age and medical use rather than sex or transgender status, and they were rationally related to Tennessee’s interest in protecting minors’ health and welfare.¹⁷⁶

Skrmetti is the LGBTQ-specific instance of the long-running doctrinal move traced in Part I.A. By recharacterizing Tennessee’s prohibition as an age- and medical-use distinction rather than a sex- or transgender-status classification, the majority replicated the analytic maneuver the Court employed in *Powell* and *Grants Pass*: it refused to see status where the regulation’s practical operation is organized around it.¹⁷⁷ The concurrences sharpen the move. Justice Barrett, joined by Justice Thomas, argued that transgender individuals do not constitute a suspect or quasi-suspect class because the asserted characteristic lacks the immutability and history of *de jure* discrimination the Court’s precedents have required.¹⁷⁸ Justice Alito would have reached the same conclusion on the assumption that the law did classify on the basis of transgender status.¹⁷⁹ Although neither rationale controlled, together they signal substantial appetite on the Court to foreclose heightened scrutiny for transgender-status classifications when squarely presented, an open question the majority opinion did not reach but that lower courts will likely face.¹⁸⁰ The dissent warned that the decision leaves vulnerable populations without robust constitutional protection against laws that disadvantage them based on gender identity.¹⁸¹

2. The *Bostock* Non-Translation

The majority’s treatment of *Bostock* warrants particular attention because it is central to this Article’s doctrinal claims. *Bostock* held that Title VII’s prohibition on discrimination “because of . . . sex” encompasses discrimination based on sexual orientation and gender identity, reasoning that “it is impossible to discriminate against a person for being homosexual or transgender without discriminating against that individual based on sex.”¹⁸² The plaintiffs and the United States in *Skrmetti* argued that the same reasoning should translate to the equal-protection context: if firing someone because they are transgender is necessarily sex discrimination under Title VII, then restricting transgender minors’ medical care should be a sex-based classification triggering heightened scrutiny under the Fourteenth Amendment.¹⁸³ The

¹⁷⁵ *Id.* at 507 (noting that the law did not prohibit healthcare providers from administering “puberty blockers or hormones to treat a minor’s congenital defect, precocious (or early) puberty, disease, or physical injury”).

¹⁷⁶ *Id.* at 511, 522–25 (reasoning the law made rational classifications on the basis of age and the medical reasons for using hormone treatments); *id.* at 511–17 (rejecting arguments that the law made any sex-based classifications); *id.* at 517–22 (rejecting arguments that the law made any classifications on the basis of transgender status).

¹⁷⁷ *Id.* at 511–17.

¹⁷⁸ *Id.* at 525–28 (Barrett, J., concurring).

¹⁷⁹ *Id.* at 528–30.

¹⁸⁰ *See, e.g.*, RICHARD A. POSNER, HOW JUDGES THINK 47–48 (2008) (noting that separate opinions, including concurrences, can provide insight into individual Justices’ reasoning and future decision-making tendencies).

¹⁸¹ *See Skrmetti*, 605 U.S. at 530–45 (Sotomayor, J., dissenting).

¹⁸² *Bostock v. Clayton Cnty.*, 590 U.S. 644, 660–62, 681 (2020).

¹⁸³ *Skrmetti*, 605 U.S. at 526 (Thomas, J., concurring).

Court declined that translation.¹⁸⁴ It characterized *Bostock*'s analysis as resting on Title VII's statutory text and on a but-for causation analysis specific to that statute, observed that "changing a minor's sex or transgender status does not alter the application of SB1," and expressly declined to address "whether *Bostock*'s reasoning reaches beyond the Title VII context."¹⁸⁵

The non-translation reveals something structural about the doctrinal architecture this Article critiques. Even when the Court has accepted, in the statutory register, that transgender discrimination is necessarily sex discrimination, it has refused to import that insight into the constitutional register where the stakes are highest. The Title VII analysis turns on statutory text that prohibits discrimination "because of" sex; the equal-protection analysis turns on whether a classification is properly characterized as sex-based, and that characterization can be defeated by redescribing the classification as something other than sex, as it was in *Skrmetti*. The recharacterization move thus operates with greater force at the constitutional level than at the statutory level. The *Bostock/Skrmetti* divergence is not an inconsistency to be reconciled but a feature of the architecture: statutory text can constrain recharacterization in ways that the equal-protection inquiry, with its dependence on judicial classification of the regulation, cannot.

3. Significance and Two Qualifications

Skrmetti's significance for this Article's framework lies not in its direct treatment of administrative discretion since the case involved a categorical statutory prohibition, but rather in the doctrinal foreclosure it substantially advances. By recharacterizing a prohibition whose practical operation is organized around transgender status as an age-and-medical-use distinction, the Court forecloses the heightened scrutiny that would otherwise subject such regulation to meaningful review.¹⁸⁶ That foreclosure operates with greater force still at the administrative level, where the absence of explicit textual classification is not a doctrinal maneuver but a structural feature of the regulatory form: if a categorical legislative prohibition fails to trigger heightened scrutiny, the facially neutral administrative frameworks through which identity is routinely governed are beyond the reach of equal-protection doctrine's most searching review.¹⁸⁷

Two qualifications limit that foreclosure. First, the majority's reasoning is in significant respects domain-specific. The opinion places considerable weight on the "medical and scientific uncertainty" surrounding gender-affirming care for minors, and that uncertainty does substantial work in justifying deference to legislative judgment.¹⁸⁸ In contexts that lack a comparable basis for epistemic deference, such as permitting decisions, custodial classification, identification

¹⁸⁴ *Id.* at 517–19.

¹⁸⁵ *Id.* at 522–24.

¹⁸⁶ *Id.* at 510–25.

¹⁸⁷ This inference follows from the structure of tiered scrutiny itself: if a regulation that explicitly names the medical treatments associated with gender transition and restricts them by age and diagnosis does not classify on the basis of sex or transgender status, *see id.*, 605 U.S. at 511–22, then permitting regimes, custodial classification systems, identification procedures, and discretionary enforcement practices—none of which names transgender status in their operative text—cannot satisfy the threshold classification requirement that triggers heightened review.

¹⁸⁸ *Skrmetti*, 605 U.S. at 504–12 (invoking *Gonzales v. Carhart*, 550 U.S. 124, 163 (2007), for the proposition that "States have wide discretion to pass legislation in areas where there is medical and scientific uncertainty," and concluding that "[r]ecent developments demonstrate the open questions that exist regarding basic factual issues before medical authorities and regulatory bodies in this area, underscoring the need for legislative flexibility").

procedures, and street-level enforcement, the rationale that drove the rational-basis posture in *Skrametti* may not transfer with equal force. The decision is best read as significantly narrowing, but not wholly eliminating, the doctrinal pathways available to challenge identity-based regulation outside the gender-affirming-care context.¹⁸⁹ Second, the *Arlington Heights* inquiry into discriminatory purpose remains available and is structurally suited to challenges against discretionary administrative regimes, permitting courts to consider historical context, the sequence of events, departures from normal procedure, and disparate impact as circumstantial evidence of intent.¹⁹⁰ Patterns of discretionary decision-making, the very feature that makes status-based regulation hard to challenge under explicit-classification doctrine, can supply that evidence, particularly where the administrative apparatus exercises individualized rather than categorical judgment.¹⁹¹ The pathway is narrower than heightened scrutiny would offer, but it is not completely foreclosed.

4. *Geduldig* as Structural Analogue

Geduldig v. Aiello supplies a closer structural analogue for the administrative dynamics this Article centers, not as binding doctrinal authority, but as a historical illustration of how the recharacterization move operates within an administrative apparatus.¹⁹² There, the Court upheld California's exclusion of pregnancy-related disabilities from a state disability-insurance program, reasoning that the classification distinguished between "pregnant women and nonpregnant persons" rather than between men and women.¹⁹³ The recharacterization move is structurally identical to *Skrametti*'s, a regulation whose practical incidence falls overwhelmingly on one sex is redescribed as targeting a medical condition, but the institutional setting differs in ways that bear on how the Article uses the case. *Geduldig*'s exclusion operated through a state-administered insurance program in which eligibility determinations were made by administrative actors applying facially neutral criteria, producing harm not through a criminal prohibition but through the routine operation of an administrative apparatus that sorted claimants based on sex-tracking criteria.

Two qualifications about *Geduldig*'s contemporary authority should nonetheless be registered. First, its reasoning was substantially undermined when Congress passed the Pregnancy Discrimination Act in response to *General Electric Co. v. Gilbert*, which had extended *Geduldig*'s logic into Title VII; that act expressly overrode *Gilbert* and confined

¹⁸⁹ For an analysis of how facial neutrality combines with the discriminatory-purpose requirement to insulate "status-enforcing state action" from heightened scrutiny, and how that dynamic operates differently across regulatory contexts, see Reva B. Siegel, *Why Equal Protection No Longer Protects: The Evolving Forms of Status-Enforcing State Action*, 49 STAN. L. REV. 1111, 1119–46 (1997).

¹⁹⁰ *Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252, 266–68 (1977).

¹⁹¹ See, e.g., *Hunter v. Underwood*, 471 U.S. 222, 227–33 (1985) (invalidating a facially neutral state constitutional provision where the *Arlington Heights* factors revealed discriminatory motivation in its enactment and continued operation). For commentary on the evidentiary structure of *Arlington Heights*, see Charles R. Lawrence III, *The Id, the Ego, and Equal Protection: Reckoning with Unconscious Racism*, 39 STAN. L. REV. 317, 322 (1987) (arguing that *Arlington Heights* permits, but rarely produces, judicial recognition of discriminatory purpose absent overt evidence).

¹⁹² *Geduldig v. Aiello*, 417 U.S. 484 (1974).

¹⁹³ *Id.* at 496–97 & n.20.

Geduldig to the constitutional context.¹⁹⁴ *Geduldig* itself was never directly overruled, but the legislative repudiation of its reasoning, coupled with the Court's substantial development of sex-equality jurisprudence since 1974, has left it as a much-criticized survivor whose continued vitality is contested.¹⁹⁵ Second, *Geduldig* arose in a benefits-distribution context in which the state's broad discretion over the allocation of public resources implicates different constitutional considerations than do prohibitory statutes that burden liberty interests directly.¹⁹⁶ *Skrametti*, by contrast, involved a statutory prohibition. *Geduldig* is therefore best treated here as historically illustrative rather than as a freestanding doctrinal capstone whose authority controls contemporary cases.

5. The Doctrinal Landscape and Its Implications

Together, *Skrametti* and *Geduldig* show that the recharacterization move operates across institutional settings: whether the vehicle is a categorical statute or an administrative eligibility rule, once a classification is redescribed as targeting a condition rather than an identity, the apparatus that implements it is insulated from heightened scrutiny regardless of practical effect. The foreclosure, however, is uneven. In custodial settings, the Eighth Amendment's deliberate-indifference framework continues to impose an individualized medical-care obligation, leaving categorical exclusions vulnerable even where equal-protection claims are foreclosed.¹⁹⁷ Claims involving custodial medical care and housing classifications are therefore more likely to succeed than identification-document requirements and public-facilities policies, which are more readily framed as administrative or categorical distinctions.

This landscape does not render the reform agenda moot; it reorients it. Where constitutional litigation offers diminishing returns as a lever of institutional change—particularly outside the custodial context, where the Eighth Amendment continues to do meaningful work—administrative, professional, and legislative reform channels become correspondingly more important. PREA compliance requirements, clinical standards and protocols operate through legal channels distinct from, though intertwined with, constitutional adjudication: federal statute, agency regulation, accreditation requirements often incorporated into contracts and licensing, and professional standards that courts increasingly treat as benchmarks for clinical reasonableness.¹⁹⁸ They can therefore be advanced through regulatory, accreditation, and contracting mechanisms that do not depend on litigation success while remaining fully embedded

¹⁹⁴ *Gen. Elec. Co. v. Gilbert*, 429 U.S. 125 (1976), *legislatively abrogated, in part, by* Pregnancy Discrimination Act of 1978, Pub. L. No. 95-555, 92 Stat. 2076 (codified as amended at 42 U.S.C. § 2000e(k)). On the legislative response as a repudiation of *Gilbert*'s extension of *Geduldig*, see Joanna L. Grossman, *Expanding the Core: Pregnancy Discrimination Law as It Approaches Full Coverage*, 52 IDAHO L. REV. 825, 827–28 (2016).

¹⁹⁵ See Reva B. Siegel, *Reasoning from the Body: A Historical Perspective on Abortion Regulation and Questions of Equal Protection*, 44 STAN. L. REV. 261, 350–56 (1992); Sylvia A. Law, *Rethinking Sex and the Constitution*, 132 U. PA. L. REV. 955, 983–86 (1984).

¹⁹⁶ See *Maher v. Roe*, 432 U.S. 464, 469–71, 474 (1977); *Harris v. McRae*, 448 U.S. 297, 315–18 (1980).

¹⁹⁷ *Estelle v. Gamble*, 429 U.S. 97, 103–04 (1976); *Benjamin v. Oliver*, 812 F. Supp. 3d 1322, 1333 (N.D. Ga. 2025).

¹⁹⁸ See 28 C.F.R. pt. 115 (PREA standards); Nat'l Comm'n on Corr. Health Care, *Position Statement: Transgender and Gender Diverse Health Care in Correctional Settings* (2020) [hereinafter NCCHC Position Statement], <https://www.ncchc.org/wp-content/uploads/Transgender-and-Gender-Diverse-Health-Care-in-Correctional-Settings-2020.pdf> [<https://perma.cc/Y4Q2-UPHK>]; WPATH Standards of Care, *supra* note 69.

in law. *Skrmetti*'s narrow focus on gender-affirming care for minors leaves unsettled a range of adjacent questions, including the equal-protection status of housing classification policies, identification procedures, and public-facilities restrictions affecting transgender adults whose constitutional status will turn on how courts conceptualize the underlying distinction rather than on the severity of the burden imposed.¹⁹⁹

F. A Legal Environment in Flux

The doctrinal critique developed in the preceding section should not be read as a claim that constitutional doctrine offers no resources at all for challenging status-based regulation. Existing doctrinal tools reach some such regulation, even if they are insufficient for the full range of harms this Article identifies. The unconstitutional conditions doctrine can be used to challenge the conditions attached to permits, licenses, and access to public benefits, constraining at least the most overt forms of identity-conditioned regulation.²⁰⁰ The overbreadth and void-for-vagueness doctrines, prominently engaged in several of the drag-performance cases discussed in Section II.A, function as a partial check on the indeterminacy that enables discretionary identity-based enforcement.²⁰¹ And the *Arlington Heights* multi-factor inquiry into discriminatory purpose, discussed in Section II.E.3, can capture some forms of status-based regulation through circumstantial evidence even where the regulation is facially neutral.²⁰² These doctrinal resources are real and have produced meaningful protection in particular cases. They remain insufficient, however, for the broader range of status-based regulation this Article identifies because each requires a doctrinal hook—an explicit condition, an indeterminate standard, or a constellation of circumstantial evidence pointing to discriminatory purpose—that is often absent from the facially neutral, discretionarily implemented frameworks through which contemporary identity-based governance most often operates.

The fragmentation of the governing legal framework compounds these doctrinal limitations. As courts confront statutes and policies that blend public-morality regulation, administrative frameworks, and identity-based control, variation across jurisdictions highlights the instability of the governing legal framework. Some courts have treated identity-based regulation primarily as a First Amendment issue, focusing on expressive conduct and vagueness; others have framed such disputes in terms of equal protection and due process.²⁰³ Agencies and local authorities navigating these differing approaches often rely on the discretionary authority characteristic of

¹⁹⁹ See, e.g., Siegel, *supra* note 189, at 1130–36.

²⁰⁰ See, e.g., *Perry v. Sindermann*, 408 U.S. 593, 597 (1972) (articulating the principle that the government may not deny a benefit to a person on a basis that infringes constitutionally protected interests, such as those protected by the First Amendment).

²⁰¹ See *Kolender v. Lawson*, 461 U.S. 352, 357–58 (1983); see also *supra* PART II.A (discussing vagueness and overbreadth challenges to drag-performance regulation).

²⁰² *Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252, 266–68 (1977).

²⁰³ Compare *Southern Utah Drag Stars v. City of St. George*, 677 F. Supp. 3d 1252, 1286 (D. Utah 2023) (analyzing drag-performance restrictions as protected expressive conduct under the First Amendment); *Woodlands Pride, Inc. v. Paxton*, 694 F. Supp. 3d 820, 847–48 (S.D. Tex. 2023), *vacated and remanded*, 168 F.4th 293 (5th Cir. 2026) (addressing vagueness and overbreadth challenges to restrictions on drag performances); *with Grimm v. Gloucester Cnty. Sch. Bd.*, 972 F.3d 586, 606–08 (4th Cir. 2020) (analyzing restroom restrictions affecting transgender students under equal protection and due process); *Adams ex rel. Kasper v. Sch. Bd. of St. Johns Cnty.*, 57 F.4th 791, 802–04 (11th Cir. 2022) (en banc) (framing transgender restroom access as an equal protection and due process issue).

street-level bureaucracies,²⁰⁴ producing uneven implementation across jurisdictions and eroding perceptions of legitimacy and fairness.²⁰⁵

Judicial decisions are only one register of the law that produces status-based regulation. The statutes, agency rules, supervisory directives, and discretionary practices that operate on the ground are themselves law, and any account that treats them as merely “implementing” doctrine misses how they constitute the regulatory order in which doctrine takes effect.²⁰⁶ The Article now turns to those institutional logics, including the organizational cultures, trust dynamics, psychological consequences, intersectional vulnerabilities, and community adaptations that shape how status-based regulation operates in practice.

III. INSTITUTIONAL LOGICS, DISCRETION, AND LIVED CONSEQUENCES

This section examines the organizational layer of status-based regulation: the institutional logics that shape how law is interpreted and applied in practice. A scope note is warranted before the analysis proceeds. The institutional dynamics this Part identifies, organizational culture, trust and legitimacy, psychological harm, intersectional vulnerability, and community adaptation, are theorized as components of how status-based regulation operates rather than as fully empirically established mechanisms. Each component draws on documented research literatures: procedural-justice scholarship for trust dynamics, minority-stress theory for psychological consequences, and intersectionality research for differential vulnerability. The synthesis of those literatures into a unified institutional account, however, generates predictions about how status-based regulation operates that exceed what any single body of evidence has directly tested. The framework, therefore, makes claims that are best understood as testable hypotheses generated by the analysis rather than as established findings. The discussion in this Part flags structural predictions as such and identifies supporting research where it directly bears on a claim.

A. *Discretion, Administrative Governance, and Institutional Culture*

Discretion is central to modern law enforcement, allowing officers to interpret and apply legal rules in response to local conditions and organizational expectations.²⁰⁷ Discretionary authority often operates through informal judgments about community norms, perceived risks, and political pressures.²⁰⁸

In practice, officers implementing licensing, zoning, and public-order rules operate within institutional environments that blur enforcement and administrative management. Administrative enforcement often operates under thinner procedural safeguards than those associated with criminal adjudication, but this is itself a legal arrangement: legislatures and agencies have allocated decisional authority to administrative actors and calibrated the procedural protections

²⁰⁴ LIPSKY, *supra* note 46, at 13–16; JEROME H. SKOLNICK, *JUSTICE WITHOUT TRIAL: LAW ENFORCEMENT IN DEMOCRATIC SOCIETY* 71–88 (4th ed. 2011) (1966).

²⁰⁵ See TYLER, *supra* note 59, at 4–6, 24–26; Jason Sunshine & Tom R. Tyler, *The Role of Procedural Justice and Legitimacy in Shaping Public Support for Policing*, 37 *LAW & SOC’Y REV.* 513, 518–19 (2003) [<https://doi.org/10.1111/1540-5893.3703002>].

²⁰⁶ See MASHAW, *supra* note 100, at 24–30; Metzger, *supra* note 101, at 484–86; Ross, *supra* note 101, at 525–30.

²⁰⁷ See generally WALKER, *TAMING THE SYSTEM*, *supra* note 46, at 23–25, 30–31.

²⁰⁸ See, e.g., BUIST & LENNING, *supra* note 27, at 15–17, 36–41, 91–96.

that accompany it. The resulting risk of inconsistent or unequal outcomes is not a departure from law but a feature of the legal regime that authorizes administrative governance. As Lipsky observed, street-level bureaucrats implement policy within these institutional constraints, and their decisions are shaped as much by institutional norms as by formal legal principles.²⁰⁹

Institutional culture amplifies these patterns. Police organizations operate within broader political and social environments that influence their priorities and perceptions of risk.²¹⁰ In jurisdictions where LGBTQ visibility is contested, officers may face pressure to respond to complaints or political directives, leading to heightened enforcement of morality-based regulations. Risk-management considerations further reinforce these dynamics: authorities often justify restrictive measures by citing concerns about public safety, potential liability, or community reaction.²¹¹ While such concerns are not inherently discriminatory, they can produce outcomes that disproportionately affect LGBTQ individuals when identity is perceived as a source of conflict or controversy, undermining procedural justice through institutional culture rather than explicit animus.²¹²

B. Trust, Legitimacy, and the Over-Policing/Under-Protection Asymmetry

The harms produced by status-based policing extend beyond formal regulatory burdens.²¹³ A recurring theme in queer criminology is the coexistence of over-policing and under-protection: LGBTQ communities frequently report heightened surveillance and regulatory scrutiny in public spaces while simultaneously experiencing inadequate institutional responses to victimization.²¹⁴ Although systematic quantitative evidence remains limited, existing research consistently documents disproportionate contact with the criminal legal system and patterns of discriminatory treatment across policing, judicial decision-making, and incarceration.²¹⁵ These findings illustrate a broader structural asymmetry in which identity becomes a basis for intervention when framed as disorder, yet is minimized or discounted when individuals seek protection as victims of harm. The asymmetry is itself intersectionally distributed; as Part III.D subsequently details, the over-policing/under-protection pattern is most acute for transgender women of color and for

²⁰⁹ LIPSKY, *supra* note 46, at 13–26, 40–53.

²¹⁰ CURRAH, *supra* note 4, at 87–88 (explaining that the “ataxic disarray” of state actors—legislatures, courts, agencies, and administrators—reflects the many institutions and norms that shape governance decisions across jurisdictions); Sunshine & Tyler, *supra* note 205, at 521.

²¹¹ See generally IAN LOADER & NEIL WALKER, *CIVILIZING SECURITY* (2007) (positing that modern security governance increasingly operates through risk management logics, where authorities justify interventions by reference to public safety, perceived threats, and social order concerns).

²¹² MOGUL ET AL., *supra* note 27, at 20–24, 38–42 (documenting how discretionary policing practices and moral regulation of gender and sexuality produce unequal enforcement and shape LGBTQ communities’ perceptions of police legitimacy).

²¹³ See, e.g., Grasso et al., *supra* note 124, at 16; Vogler, *supra* note 169.

²¹⁴ BUIST & LENNING, *supra* note 27, at 91–97; Grasso et al., *supra* note 124, at 16; Kristin B. Wolff & Carrie L. Cokely, “To Protect and Serve?”: *An Exploration of Police Conduct in Relation to the Gay, Lesbian, Bisexual, and Transgender Community*, 11 *SEXUALITY & CULTURE* 1 (2007) [<https://doi.org/10.1007/s12119-007-9000-z>].

²¹⁵ See Jenness & Rowland, *supra* note 45, at 284–86.

LGBTQ people whose race, immigration status, or housing situation already places them within the ambit of aggressive enforcement.

Victimization risks remain elevated, particularly for transgender and gender-nonconforming individuals.²¹⁶ Despite this vulnerability, studies indicate that victims often encounter barriers when seeking police assistance, including misclassification of incidents, dismissive treatment, or reluctance to pursue hate-crime enhancements.²¹⁷ Underreporting remains a persistent issue, driven in part by distrust of law enforcement and fear of secondary victimization.²¹⁸

Research on policing in marginalized communities confirms that discretionary enforcement and order-maintenance strategies can diminish procedural justice and legitimacy even when officers act within formal legal bounds.²¹⁹ Inadequate responses to anti-LGBT violence shape how individuals evaluate institutional recognition and protection.²²⁰ For instance, studies of intimate partner violence among LGBTQ populations indicate that distrust of law enforcement reduces reporting and limits access to institutional support.²²¹ Status-based policing thus appears to produce the procedural-justice cascade theorized in Part II.A: regulatory scrutiny diminishes perceived neutrality; diminished neutrality reduces institutional trust; reduced trust suppresses reporting and cooperation; and suppressed cooperation undermines public-safety outcomes.

Doctrinally, the over-policing/under-protection asymmetry implicates both equal-protection principles and the state's obligation to provide nondiscriminatory access to public safety. Although the Constitution does not impose a generalized duty to protect individuals from private harm,²²² the discriminatory allocation of protective services can raise constitutional concerns when motivated by bias or unequal treatment.²²³ Reform efforts must therefore address both sides of the equation: reducing discriminatory enforcement without improving protective responsiveness leaves structural vulnerabilities intact, while enhancing victim services without addressing regulatory overreach fails to confront the broader logic of identity-based intervention.

C. Psychological and Social Consequences

Contemporary LGBTQ policing and correctional practices carry significant psychological and social consequences. Regulatory scrutiny reinforces stigma, heightens stress, and

²¹⁶ Rebecca L. Stotzer, *Violence Against Transgender People: A Review of United States Data*, 14 AGGRESSION & VIOLENT BEHAV. 170 (2009) [<https://doi.org/10.1016/j.avb.2009.01.006>].

²¹⁷ BUIST & LENNING, *supra* note 27, at 106–07; Grasso et al., *supra* note 124, at 14–16; Doug Meyer, *An Intersectional Analysis of Lesbian, Gay, Bisexual, and Transgender (LGBT) People's Evaluations of Anti-Queer Violence*, 26 GENDER & SOC'Y 849 (2012) [<https://doi.org/10.1177/0891243212461299>] [hereinafter D. Meyer, *Intersectional Analysis*]; Miles-Johnson, *supra* note 59, at 688–89.

²¹⁸ See sources cited *supra* notes 216–217; see also Lisa Langenderfer-Magruder et al., *Experiences of Intimate Partner Violence and Subsequent Police Reporting Among Lesbian, Gay, Bisexual, Transgender, and Queer Adults in Colorado: Comparing Rates of Cisgender and Transgender Victimization*, 31 J. INTERPERSONAL VIOLENCE 855 (2016) [<https://doi.org/10.1177/0886260514556767>].

²¹⁹ Jacinta M. Gau & Rod K. Brunson, *Procedural Justice and Order Maintenance Policing: A Study of Inner-City Young Men's Perceptions of Police Legitimacy*, 27 JUST. Q. 255 (2010) [<https://doi.org/10.1080/07418820902763889>].

²²⁰ See D. Meyer, *Intersectional Analysis*, *supra* note 217, at 867–68.

²²¹ See Langenderfer-Magruder et al., *supra* note 218, at 860–61.

²²² *DeShaney v. Winnebago Cnty. Dep't of Soc. Servs.*, 489 U.S. 189, 195–97 (1989).

²²³ *Village of Arlington Heights v. Metro. Hous. Dev. Corp.*, 429 U.S. 252, 265–68 (1977).

discourages participation in public life.²²⁴ Minority stress theory provides the key analytical framework here: Meyer demonstrates that chronic exposure to prejudice and social marginalization produces cumulative psychological strain, including anxiety, depression, social withdrawal, and other poor health outcomes.²²⁵

These effects are compounded in custodial settings. Research by Jenness and colleagues documents how transgender individuals in correctional institutions experience layered forms of vulnerability, including elevated risks of victimization and isolation.²²⁶ Administrative decisions regarding housing, medical care, and classification require individuals to negotiate their gender identity within rigid institutional structures, amplifying psychological strain. When institutional policies fail to account for gender diversity, they may contribute to heightened exposure to violence and diminished access to appropriate care.²²⁷

At the social level, persistent exposure to identity-based scrutiny discourages participation in civic and communal life. When LGBTQ individuals perceive public institutions as unreliable or hostile, they may withdraw from both formal and informal networks of support, weakening the social bonds that contribute to community safety.²²⁸

D. Intersectionality and the Compounded Harms of Status-Based Regulation

Regulatory exposure across LGBTQ communities varies not only in degree but in kind, as race, class, immigration status, and gender identity shape who becomes legible to administrative authority and how that authority is exercised, requiring an intersectional account that is structural rather than merely additive.²²⁹ Although existing evidence more clearly documents disparities in frequency than in qualitative distinctiveness,²³⁰ the logic of status-based regulation predicts that administrative discretion produces different forms of regulatory contact across intersectional locations, illustrated through examples involving transgender women of color, undocumented individuals, unhouseed LGBTQ youth, and those at the intersection of poverty and criminal-record status.²³¹

Transgender women of color face particularly acute exposure to the over-policing/under-protection asymmetry. Research demonstrates that Black and Hispanic transgender women

²²⁴ I. Meyer, *Minority Stress*, *supra* note 168, at 676–77; Vogler, *supra* note 169, at 2–3.

²²⁵ Mark L. Hatzenbuehler, *How Does Sexual Minority Stigma “Get Under the Skin”? A Psychological Mediation Framework*, 135 PSYCHOL. BULL. 707 (2009) [<https://doi.org/10.1037/a0016441>].

²²⁶ Jenness & Fenstermaker, *supra* note 151, at 12–13; Jenness & Rowland, *supra* note 45, at 284–86; Sexton et al., *supra* note 151, at 838–39.

²²⁷ Jenness, *Social Ecology*, *supra* note 154, at 5–7.

²²⁸ Robert J. Sampson et al., *Neighborhoods and Violent Crime: A Multilevel Study of Collective Efficacy*, 277 SCI. 918 (1997) [<https://doi.org/10.1126/science.277.5328.918>].

²²⁹ Crenshaw, *Demarginalizing the Intersection*, *supra* note 104, at 140–49; Crenshaw, *Mapping the Margins*, *supra* note 104, at 1244–50 *see also* Devon W. Carbado, *Colorblind Intersectionality*, 38 SIGNS 811, 816–20 (2013) [<https://doi.org/10.1086/6696666>].

²³⁰ Bauer et al., *supra* note 106; Intersectionality scholarship has long debated whether the framework generates testable empirical claims or operates primarily as a heuristic for reading existing evidence. *See* McCall, *supra* note 105, at 1773–80.

²³¹ The discussion that follows operates in two registers, and the distinction matters. Claims about differential rates of regulatory contact (e.g., that transgender women of color encounter elevated rates of stops and profiling, or that LGBTQ youth experience disproportionate homelessness) rest on existing empirical literatures and are

encounter elevated rates of stops, arrests, and profiling in street-level enforcement, often under public-order and quality-of-life ordinances that function as pretextual mechanisms for regulating gender nonconformity.²³² Research also finds that they are subject to more police harassment and violence relative to other groups, associated with intersecting racial and gender identities.²³³ Notably, these negative interactions are not only more prevalent but also more psychologically harmful for transgender women of color compared to both white transgender and cisgender women.²³⁴

At the same time, transgender people of color face disproportionately inadequate institutional responses when they are themselves victims of violence, an asymmetry that reflects the intersecting operation of racial, gender, and sexual stigma in shaping police discretion.²³⁵ The *Policing the Rainbow* national survey of LGBTQ experiences with law enforcement documents that transgender people of color are significantly more likely than their white counterparts to report negative police interactions, including use of force, misgendering, and denial of services.²³⁶ These disparities cannot be explained by LGBTQ identity alone; they reflect the compounding effects of racial profiling and the concentration of aggressive order-maintenance policing in low-income communities of color.

Immigration status adds another dimension of vulnerability. Undocumented LGBTQ individuals and asylum seekers face dual exposure to immigration enforcement and to the identity-based regulatory patterns described here.²³⁷ This creates a compound risk profile in which involvement with local law enforcement, whether as a suspect, a victim, or simply a bystander, may trigger consequences that extend far beyond the immediate encounter. This

presented as documented findings supported by the cited evidence. Claims about differential forms of regulatory contact (e.g., that administrative discretion produces qualitatively distinct patterns of intervention across intersectional locations, or that the procedural-justice cascade operates differently in compounded-vulnerability contexts) are structural predictions generated by the framework and are presented as such—hypotheses about institutional operation that synthesize what is known into testable claims rather than independently established findings. The two registers are mutually reinforcing in the analysis: rate-level evidence supplies the empirical anchor that motivates the structural prediction, and the structural prediction supplies the analytic vocabulary for organizing the rate-level evidence into a coherent institutional account. But the distinction should be preserved when the framework’s claims are evaluated.

²³² BUIST & LENNING, *supra* note 27, at 106–07; Grasso et al., *supra* note 124, at 19–20.

²³³ Jamie E. Hereth, “*I Feel Like I Have Three Strikes Against Me*”: *Transgender Women’s Experiences with Police Bias and Discrimination*, 33 CRITICAL CRIMINOLOGY 481 (2025) [<https://doi.org/10.1007/s10612-025-09846-z>].

²³⁴ Dustin T. Duncan et al., *Neighborhood Safety and Neighborhood Police Violence Are Associated with Psychological Distress Among English- and Spanish-Speaking Transgender Women of Color in New York City: Findings from the TURNNT Cohort Study*, 101 J. URB. HEALTH 557 (2024) [<https://doi.org/10.1007/s11524-024-00879-3>].

²³⁵ Doug Meyer, *Evaluating the Severity of Hate-Motivated Violence: Intersectional Differences Among LGBT Hate Crime Victims*, 44 SOCIO. 980 (2010) [<https://doi.org/10.1177/0038038510375737>].

²³⁶ Grasso et al., *supra* note 124, at 20–21.

²³⁷ LARA SPRAGUE & JORDAN GRASSO, UCLA SCH. OF LAW WILLIAMS INST., IMPACTS OF IMMIGRATION ENFORCEMENT ON LGBT ADULT IMMIGRANTS IN LOS ANGELES COUNTY (2025), <https://williamsinstitute.law.ucla.edu/wp-content/uploads/LACo-LGBT-Immigrants-Jun-2025.pdf> [<https://perma.cc/KJ3U-N29M>]; Layla Zahra, *Undocumented and Queer Immigrants Face Unique Challenges Navigating the Legal System*, TEEN VOGUE (Nov. 11, 2024), <https://www.teenvogue.com/story/undocumented-queer-immigrants> [<https://perma.cc/58GK-Q47R>].

dynamic produces a chilling effect on reporting, community engagement, and access to services, illustrating how status-based regulation operates not only through direct intervention but also through the anticipatory effects of enforcement risk.²³⁸

Age, social class, and housing insecurity similarly shape regulatory exposure. LGBTQ youth experience homelessness at disproportionately high rates relative to their share of the general youth population.²³⁹ This places them in sustained contact with law enforcement through order-maintenance and quality-of-life enforcement regimes that frequently criminalize survival behaviors.²⁴⁰

For LGBTQ youth of color especially, discretionary enforcement regulates both visible homelessness and gender nonconformity.²⁴¹ Homelessness renders LGBTQ youth persistently visible to state actors, intensifying status-based regulatory dynamics through the convergence of poverty, race, and gender that Beth Richie has analyzed.²⁴² In short, intersectionality does not merely intensify status-based regulation, it likely changes its structure.

Skolnik's taxonomy sharpens this structural point. The traits that most severely compound LGBTQ regulatory exposure, such as poverty, homelessness, and criminal-record status, are precisely the quasi-immutable characteristics that U.S. equal-protection doctrine has declined to protect through heightened scrutiny.²⁴³ A transgender woman of color experiencing homelessness is thus governed through the intersection of a trait (gender identity) whose doctrinal status is contested after *Skrimetti* and traits (poverty and homelessness) that have been excluded from suspect-class recognition because they are deemed neither immutable nor constructively immutable.²⁴⁴ Those most exposed to status-based regulation are therefore individuals whose salient characteristics fall outside the protective reach of equal-protection doctrine, not because those characteristics are irrelevant to subordination, but because doctrine's binary taxonomy lacks a category for traits that are stable enough to organize administrative intervention yet theoretically alterable.²⁴⁵ Recognizing quasi-immutability as a basis for heightened constitutional protection would not, by itself, dismantle the administrative mechanisms through which status-based regulation operates, but it would narrow the doctrinal gap that permits those mechanisms to target the most vulnerable LGBTQ subpopulations without meaningful scrutiny.

Reform strategies that address LGBTQ identity in isolation, without accounting for how race, class, and immigration status compound regulatory exposure, will benefit relatively privileged

²³⁸ Zahra, *supra* note 237.

²³⁹ MATTHEW H. MORTON ET AL., CHAPIN HALL AT THE UNIV. OF CHI. & VOICES OF YOUTH COUNT, MISSED OPPORTUNITIES: LGBTQ YOUTH HOMELESSNESS IN AMERICA (2018), <https://www.chapinhall.org/wp-content/uploads/VoYC-LGBTQ-Brief-FINAL.pdf> [<https://perma.cc/XL2C-HVVE>]; NAT'L NETWORK FOR YOUTH, POLICY BRIEF: LGBTQ YOUTH HOMELESSNESS (2022), <https://nn4youth.org/wp-content/uploads/23-LGBTQ-Policy-Brief.pdf> [<https://perma.cc/G8NR-SDUP>].

²⁴⁰ See *supra* notes 24–42 and accompanying text.

²⁴¹ Robinson, *supra* note 34, at 219.

²⁴² BETH E. RICHIE, ARRESTED JUSTICE: BLACK WOMEN, VIOLENCE, AND AMERICA'S PRISON NATION (2012).

²⁴³ Cf. Skolnik, *supra* note 35, at 205–06, 210.

²⁴⁴ *Id.* at 208 (explaining that “individuals can experience direct and indirect discrimination precisely because their personal traits are sticky and persistent”).

²⁴⁵ *Id.* at 222–24 (arguing that recognizing quasi-immutable traits would enable courts to address discrimination against marginalized groups whose traits are stable and difficult to change).

LGBTQ individuals while leaving the most exposed without meaningful change. Integration of intersectional analysis across use-of-force policy, quality-of-life enforcement, immigration-enforcement partnerships, and responses to homelessness is therefore essential to addressing the structural inequalities that make some LGBTQ individuals far more vulnerable than others.

E. Community Adaptation and Informal Safety Networks

In response to experiences of over-policing and under-protection, LGBTQ communities have long developed alternative strategies for safety, mutual aid, and institutional navigation, reflecting both resilience and structural necessity. These responses are not episodic but represent durable forms of collective governance shaped by historical encounters with state regulation.

As Spade argues, mutual aid emerges where institutions fail to meet the needs of marginalized communities, producing grassroots systems of care and coordination that function independently of, or alongside, state authority.²⁴⁶ In LGBTQ contexts, practices including volunteer safety marshals at Pride events, peer-based crisis networks, community-funded bail support, and rapid-response communication systems, respond to perceived institutional inadequacies.

This pattern is consistent with broader social movement scholarship on legal mobilization and institutional distrust. McCann demonstrates that marginalized groups engage the law strategically, calibrating reliance on formal institutions based on perceived responsiveness and fairness.²⁴⁷ Similarly, Sarat and Kearns emphasize that legality operates in everyday life not only through official doctrine but through informal practices and community negotiation.²⁴⁸ LGBTQ adaptation should therefore be understood not as disengagement from law, but as a recalibration of where and how institutional authority is trusted.

The over-policing/under-protection asymmetry further explains the development of such networks. Richie's analysis shows how heightened surveillance can coexist with inadequate protection from violence, as institutions prioritize control over care.²⁴⁹ Within LGBTQ communities, historical memory also shapes contemporary adaptation: Armstrong and Crage show how the symbolic legacy of Stonewall functions not merely as commemoration but as a narrative of resistance to police control, reinforcing present-day skepticism toward law enforcement and the importance of autonomous organization.²⁵⁰ Custodial settings provide a parallel example: incarcerated transgender individuals frequently rely on peer alliances and

²⁴⁶ See generally DEAN SPADE, *MUTUAL AID: BUILDING SOLIDARITY DURING THIS CRISIS (AND THE NEXT)* (2020) (arguing that grassroots mutual aid networks provide an alternative to state-centered responses to crisis by building community-based systems of care, solidarity, and collective survival).

²⁴⁷ MICHAEL W. MCCANN, *RIGHTS AT WORK: PAY EQUITY REFORM AND THE POLITICS OF LEGAL MOBILIZATION* (1994).

²⁴⁸ AUSTIN SARAT & THOMAS R. KEARNS, *LAW IN EVERYDAY LIFE* (1995).

²⁴⁹ RICHIE, *supra* note 242, at 16–17, 39–40, 124–25 (arguing that in a “prison nation,” state institutions frequently respond to marginalized women’s victimization with punishment, surveillance, or neglect rather than meaningful protection or care).

²⁵⁰ Elizabeth A. Armstrong & Suzanna M. Crage, *Movements and Memory: The Making of the Stonewall Myth*, 71 AM. SOCIO. REV. 724 (2006) [<https://doi.org/10.1177/000312240607100502>].

informal support networks to mitigate institutional vulnerabilities,²⁵¹ demonstrating both resilience and structural deficiencies in institutional governance.

Importantly, the existence of informal safety networks should not be misinterpreted as evidence that formal reform is unnecessary. Collective efficacy research underscores that sustainable safety emerges from collaboration between formal institutions and communities, not substitution.²⁵² When marginalized groups must create alternative infrastructures to secure basic safety and recognition, the legitimacy of formal authority remains incomplete.

LGBTQ mutual aid organizations, community safety networks, and peer support systems function as repositories of practical knowledge about the failures of formal governance. Reform strategies that bypass these organizations by pursuing policy change through administrative channels alone risk reproducing the institutional insularity that generated distrust. A more effective model is one in which formal institutions partner with informal networks, treating community organizations not merely as outreach targets but as co-producers of safety policy. This requires involving LGBTQ advocacy and mutual aid organizations in training development, data collection design, oversight mechanisms, and evaluation of enforcement outcomes.

IV. IMPLICATIONS FOR POLICY AND PRACTICE

This Part proposes reforms operating across legal registers other than constitutional litigation: statutory revision, administrative rulemaking, agency policy-setting, accreditation regimes, supervisory directives, and direct intervention in policing and correctional practice. The doctrinal critique developed in Parts I and II identifies a structural mismatch: equal-protection doctrine is calibrated for explicit, text-based, classification-driven regulation, whereas status-based regulation operates through implementation rather than classification; the reforms proposed in this Part intervene at that implementation layer, inside the institutions that exercise discretion, design administrative categories, and produce identity-correlated outcomes. The argument is modest: reforms targeting the implementation layer are more responsive to the harm mechanism this Article identifies than constitutional litigation alone, and pursuing them collectively, with the design features Section IV.F describes, raises the probability of structural change relative to internally-incentivized reforms operating under organizational logics aligned with the practices they ostensibly constrain.

What distinguishes this reform agenda from familiar police-reform and correctional-reform recommendations is that each reform is calibrated against a specific institutional obstacle that the framework of status-based regulation identifies. Six obstacles structure the analysis: *legal endogeneity* (the absorption of reform commitments into symbolic compliance forms that preserve underlying discretion); *administrative complexity* (the dispersal of decisional authority across actors and layered bureaucracies); *risk-management framing* (the conversion of marginalized identity into a proxy for risk through actuarial logics); *penal populism* (the political incentive to enact broadly worded regulations that defer implementation to administrative actors); *intersectional adaptation* (the capacity of status-based regulation to maintain its practical effects by shifting which subpopulations bear regulatory exposure under new legal constraints); and *legitimacy fragility* (the dependence of reform durability on alignment between doctrinal

²⁵¹ See Jenness & Fenstermaker, *supra* note 151, at 19–21; Jenness, *Social Ecology*, *supra* note 154, at 10.

²⁵² See Sampson et al., *supra* note 228, at 926–27.

commitments, administrative practice, and lived experience). Section IV.F examines each in detail. Sections IV.A through IV.E pair each reform with the obstacle it is designed to disrupt: reforms unmoored from specific obstacles tend to produce the symbolic compliance that legal-endogeneity research documents, while reforms designed against particular obstacles introduce the external accountability, empirical verification, and countervailing authority that raise the probability of structural change.

A. Training and Organizational Learning

Training and organizational learning are designed primarily to disrupt legal endogeneity and administrative complexity. The reforms proposed below introduce external accountability and empirical verification into training architecture so that officers' institutional understanding of equality commitments cannot be generated entirely within the agency itself.²⁵³

Traditional diversity training often emphasizes awareness rather than operational competence, leaving officers uncertain about how to apply legal standards in real-world encounters.²⁵⁴ Effective training must therefore provide concrete guidance on how constitutional obligations related to equal protection and due process apply in interactions involving gender expression, public assembly, custodial classification, and access to public facilities. Research suggests that programs integrating legal instruction with scenario-based exercises improve officers' ability to recognize how discretionary decisions may produce disparate impacts, even absent explicit bias.²⁵⁵

Organizational learning extends beyond training sessions. Without mechanisms for ongoing evaluation and feedback, training risks functioning as a one-time event rather than an ongoing process of institutional change. Agencies should direct internal affairs units, inspector general offices, or data-analysis divisions to examine enforcement patterns, identify where discretionary practices produce unequal outcomes, and adjust policies accordingly. Evidence-based policing research shows that durable reform requires systematic evaluation, clear performance metrics, and sustained leadership commitment.²⁵⁶ Implementation science similarly demonstrates that policy change succeeds only when embedded in organizational routines and reinforced through ongoing monitoring and feedback.²⁵⁷

²⁵³ See generally SAMUEL WALKER, POLICE ACCOUNTABILITY: THE ROLE OF CITIZEN OVERSIGHT (2001) (arguing that effective police accountability depends on institutional reforms such as improved training, supervisory oversight, systematic data collection, and external review mechanisms to monitor and correct misconduct).

²⁵⁴ Wolff & Cokely, *supra* note 214, at 19–20 (emphasizing the continuing need for education and outreach for law enforcement officials regarding issues affecting the LGBTQ community to address problems in police response reflective of training, department policies, and police culture).

²⁵⁵ LORIE A. FRIDELL, PRODUCING BIAS-FREE POLICING: A SCIENCE-BASED APPROACH 63–68, 116–21 (2017); Emily G. Owens et al., *Can You Build a Better Cop? Experimental Evidence on Supervision, Training, and Policing in the Community*, 17 CRIMINOLOGY & PUB. POL'Y 41, 55–60 (2018) [<https://doi.org/10.1111/1745-9133.12337>].

²⁵⁶ ANTHONY A. BRAGA & DAVID L. WEISBURD, POLICE INNOVATION: CONTRASTING PERSPECTIVES (2020); Lawrence W. Sherman, *The Rise of Evidence-Based Policing: Targeting, Testing, and Tracking*, 42 CRIME & JUST. 377 (2013) [<https://doi.org/10.1086/670819>]; Cynthia Lum et al. *The Evidence-Based Policing Matrix*, 7 J. EXPERIMENTAL CRIMINOLOGY 3 (2011) [<https://doi.org/10.1007/s11292-010-9108-2>].

²⁵⁷ Dean L. Fixsen et al., Univ. of S. Fla. Louis de la Parte Fla. Mental Health Inst., *Implementation Research: A Synthesis of the Literature*, FRANK PORTER GRAHAM CHILD DEV. INST. (2005),

A practical caveat is necessary. The recommendation that agencies examine enforcement patterns and adjust policies assumes that someone within the agency is positioned to perform that function and has the authority to compel policy change. That assumption may hold in some agencies but not others. Internal incentives for such self-monitoring are typically weak, particularly where the practices in question are entrenched, viewed as effective, or politically protected.²⁵⁸ The legal endogeneity literature further suggests that internal review mechanisms tend toward symbolic compliance rather than substantive change.²⁵⁹ Reform proposals must therefore distinguish between internal incentives, which are limited, and external mandates, which carry the force needed to overcome resistance, including consent decrees, federal grant conditions, statutory or regulatory data-collection mandates, and accreditation requirements tied to demonstrated compliance. The reforms catalogued in this Part are most likely to produce structural change when paired with at least one such external mandate; absent that pairing, they are likely to be absorbed into existing routines without altering the discretionary practices that produce status-based regulation.²⁶⁰

B. Accountability, Data, and Oversight

Accountability, data, and oversight reforms are designed to counter legal endogeneity by making institutional outcomes visible rather than relying on formal procedures as evidence of compliance. Without reliable data on how laws and policies are implemented, it is difficult to identify patterns of unequal enforcement or evaluate whether reforms produce substantive change.

Relevant data include information about police interactions involving LGBTQ individuals or events, outcomes of enforcement decisions related to public expression, facility access, and custodial classification, as well as complaints and grievances alleging identity-based treatment. Institutions that systematically collect and analyze these data, such as documentation of housing placements, victimization reports, and medical-care decisions, are better equipped to identify structural patterns of exclusion and develop targeted policies to improve conditions for incarcerated transgender individuals.²⁶¹

Implementation of meaningful data collection faces legal and practical obstacles that cannot be ignored. The Privacy Act of 1974 and analogous state regimes constrain agencies' collection and retention of personally identifying information, particularly for characteristics such as gender identity that may be regarded as sensitive.²⁶² Unlike race and sex, which are tracked through Uniform Crime Reports and related federal systems, gender identity lacks a comparable federal mandate, leaving collection to develop unevenly across jurisdictions with no consistent

<https://fpg.unc.edu/sites/fpg.unc.edu/files/resource-files/NIRN-MonographFull-01-2005.pdf>
[<https://perma.cc/2FKD-44VR>].

²⁵⁸ See LIPSKY, *supra* note 46, at 13–26, 170–71.

²⁵⁹ See, e.g., Lauren B. Edelman, *Legal Ambiguity and Symbolic Structures: Organizational Mediation of Civil Rights Law*, 97 AM. J. SOC. 1531, 1542–45 (1992).

²⁶⁰ *Id.* at 1532–36, 1541–45; Paul J. DiMaggio & Walter W. Powell, *The Iron Cage Revisited: Institutional Isomorphism and Collective Rationality in Organizational Fields*, 48 AM. SOC. REV. 147, 150–54 (1983) [<https://doi.org/10.2307/2095101>].

²⁶¹ Jenness, *Social Ecology*, *supra* note 154, at 6–7; Lum et al., *supra* note 256, at 20–21.

²⁶² Pub. L. No. 93-579, § 2(b)(6), 88 Stat. 1896, 1896 (1974) (codified as amended at 5 U.S.C. § 552a).

methodology.²⁶³ Effective data collection therefore requires not only agency willingness but legal authorization and practical capacity that is, at present, sometimes absent. Reform proposals should accordingly include statutory or regulatory authorization for necessary data collection, model protocols developed with privacy experts and affected communities, and standardized data-quality controls that allow comparison across jurisdictions.²⁶⁴ Without this legal scaffolding, agency-level efforts tend to produce idiosyncratic and incomparable records that fail to generate the structural insights required for reform.

Oversight mechanisms play a complementary role in ensuring that data collection produces meaningful change. Independent review bodies, civilian oversight boards, and internal auditing processes provide checks on discretionary authority, helping ensure that policies are implemented consistently and in accordance with constitutional principles. These mechanisms are especially important where enforcement decisions are shaped by community pressure or political considerations, as they help insulate institutional practices from external bias. Public reporting of enforcement outcomes, policy changes, and oversight findings further signals a commitment to transparency and fairness. For LGBTQ communities whose relationships with law enforcement have often been marked by distrust, such transparency can play a critical role in rebuilding institutional legitimacy.²⁶⁵

C. Integrating Constitutional Principles into Practice

Evolving interpretations of sex-based classifications and gender identity protections underscore that equal-protection analysis is dynamic, responding to changing understandings of identity and equality.²⁶⁶ Agencies must remain attentive to these developments, ensuring that regulatory frameworks governing public expression, facility access, and custodial classification reflect contemporary constitutional standards. Integrating constitutional principles into administrative practice addresses risk-management framing and legitimacy fragility together. The reforms below articulate how doctrinal commitments translate into discretionary decisions, so that equality norms are not merely formal compliance markers but operational standards that constrain frontline judgment.

Building on the accountability mechanisms developed in the prior section, policing research shows that systematic evaluation and transparent reporting improve both effectiveness and public trust,²⁶⁷ while the broader literature on collective efficacy emphasizes that safety is produced through collaborative relationships between institutions and communities, not by formal law

²⁶³ LAUREN J.A. BOUTON & ELANA REDFIELD, UCLA WILLIAMS INST., REMOVAL OF SEXUAL ORIENTATION AND GENDER IDENTITY FROM FEDERAL DATA COLLECTIONS, JANUARY 2025 TO JANUARY 2026 (2026), <https://williamsinstitute.law.ucla.edu/wp-content/uploads/Federal-SOGI-Data-Collection-Feb-2026.pdf> [<https://perma.cc/R7B5-ZW9A>].

²⁶⁴ *See id.* at 12 (citing, *inter alia*, NAT'L ACADS. OF SCIS. ENG'G & MED., MEASURING SEX, GENDER IDENTITY, AND SEXUAL ORIENTATION (2022), <https://www.nationalacademies.org/publications/26424> [<https://perma.cc/Q8GL-QM39>]); *see also* COMM'N ON EVIDENCE-BASED POLICYMAKING, THE PROMISE OF EVIDENCE-BASED POLICYMAKING 41–47 (2017), <https://www2.census.gov/adrm/fesac/2017-12-15/Abraham-CEP-final-report.pdf> [<https://perma.cc/VC8A-PRS8>].

²⁶⁵ Sunshine & Tyler, *supra* note 205, at 518–19, 523–24.

²⁶⁶ *See, e.g.*, *Bostock v. Clayton Cnty.*, 590 U.S. 644 (2020); *Lawrence v. Texas*, 539 U.S. 558 (2003); *Romer v. Evans*, 517 U.S. 620 (1996); *United States v. Virginia*, 518 U.S. 515 (1996).

²⁶⁷ Lum et al., *supra* note 256, at 3–5, 19–21.

enforcement alone.²⁶⁸ Research on policing and citizenship reinforces this point by demonstrating that discretionary encounters with law enforcement shape individuals' sense of belonging and recognition within the political community.²⁶⁹

At a structural level, reform must also confront how institutions reproduce inequality even absent explicit bias. Sociological research on racialized and gendered organizations shows that institutional rules, cultures, and practices often encode dominant norms, producing disparities through routine operations.²⁷⁰ In the context of LGBTQ policing, this insight underscores the importance of examining how administrative systems like classification policies, permitting regimes, and identification procedures embed normative assumptions about gender and sexuality.

D. Reforming Custodial Policies

Custodial reform is the domain in which legal endogeneity, risk-management framing, and intersectional vulnerability converge most sharply, and it therefore provides the clearest test of the reforms proposed here. It also illustrates the mutual-constitution claim developed in Part I: PREA's administrative standards and WPATH's professional protocols have, through the discretionary practices of correctional officials and the litigation those practices generate, been incorporated into the Eighth Amendment's deliberate-indifference framework. Reforms at the administrative level can reshape the constitutional minimum without relying on changes in Supreme Court doctrine. Such reform is essential because correctional institutions intensify the harms of status-based regulation. Transgender and gender-diverse people in custody face elevated risks of sexual victimization, inadequate medical care, and administrative isolation, risks that stem from housing, classification, and health-care systems that fail to account for gender diversity.²⁷¹

Policy reform should begin with individualized, evidence-based housing and classification practices. The Department of Justice's PREA standards require that housing decisions for transgender and intersex people be made on a case-by-case basis with "serious consideration" of the person's views about safety, along with security risk, disciplinary history, and medical and mental-health needs.²⁷² Adopting PREA-compliant assessments reduces reliance on housing by anatomy or blanket segregation, both of which increase victimization risk and legal exposure.

Custodial health-care policies must align with professional standards for transgender health. Correctional health guidance from the NCCHC directs facilities to provide gender-affirming medical and mental-health care consistent with accepted clinical standards and to evaluate treatments on an individualized basis.²⁷³ The WPATH Standards of Care likewise articulate

²⁶⁸ Sampson et al., *supra* note 228, at 918–19 (explaining that informal social control in neighborhoods operates alongside formal institutions such as police, shaping safety and levels of violence).

²⁶⁹ CHARLES R. EPP ET AL., *PULLED OVER: HOW POLICE STOPS DEFINE RACE AND CITIZENSHIP* (2014) (arguing that discretionary police stops that disproportionately target racial minorities shape citizens' perceptions of race, rights, and belonging in their interactions with law enforcement).

²⁷⁰ Victor Ray, *A Theory of Racialized Organizations*, 84 AM. SOCIO. REV. 26 (2019) [<https://doi.org/10.1177/0003122418822335>].

²⁷¹ Jenness & Fenstermaker, *supra* note 151, at 12–13; Sexton et al., *supra* note 151, at 841–43.

²⁷² 28 C.F.R. pt. 115; *see also* U.S. Dep't of Just., *Standard § 115.42*, PREA RES. CTR., <https://www.prearesourcecenter.org/standard/115-42> [<https://perma.cc/YDY6-X9GY>] (last visited Mar. 15, 2026).

²⁷³ *See* NCCHC Position Statement, *supra* note 198, at 1.

clinical protocols for assessing and treating gender dysphoria that should serve as benchmarks for continuity of care.²⁷⁴ Ensuring access to medically indicated hormone therapy, mental-health services, and gender-appropriate care advances health outcomes and reduces constitutional risk under *Estelle v. Gamble*'s deliberate-indifference framework.²⁷⁵

Reforms should also create clear procedural safeguards and grievance avenues with independent review. Administrative grievance systems must be prompt, confidential where appropriate, and include external oversight when complaints raise safety or health concerns. Research on transgender prisoners suggests that when classification and medical decisions are experienced as arbitrary due to a lack of transparent procedures and review, they can produce additional harms and deepen institutional distrust.²⁷⁶ Independent review mechanisms, whether through civilian oversight, external medical review panels, or PREA auditing and corrective action, help ensure that policy revisions translate into practice rather than remaining aspirational. Training and interprofessional coordination are also essential: custodial staff, medical providers, and administrators should receive sustained instruction on gender-affirming practice, confidentiality, and the legal obligations implicated by housing and care decisions, with training tied to supervision and performance measures.

Finally, data collection, monitoring, and transparency are essential. Facilities should systematically track housing decisions, requests for gender-affirming care, incidence of sexual victimization, and outcomes of grievances and investigations. These data serve both corrective and evidentiary functions: they enable agencies to identify patterns requiring policy change and create a public record demonstrating compliance with professional standards and constitutional obligations.

E. Strengthening Community Partnerships and Collaboration

Community partnerships can counter legal endogeneity, intersectional vulnerability, and legitimacy fragility, but only if they introduce authority outside institutional control. Reforms fail when agencies retain full control over the structure of participation, producing the “invited spaces” that participatory-governance research identifies as prone to co-optation.²⁷⁷ Effective design requires independent funding, formal decision-making authority, and escalation mechanisms that allow community partners to register disagreement when their input is disregarded, features that distinguish meaningful partnership from symbolic consultation.

²⁷⁴ See WPATH Standards of Care, *supra* note 69, at S5.

²⁷⁵ *Estelle v. Gamble*, 429 U.S. 97, 104–05 (1976).

²⁷⁶ See, e.g., Rachel Engelberg et al., *Challenges Unique to Transgender Persons in US Correctional Settings: A Scoping Review*, 100 J. URB. HEALTH 1170 (2023) [<https://doi.org/10.1007/s11524-023-00794-z>]; cf. Cathal Ryan & Michael Bergin, *Legitimacy and Procedural Justice in Prisons: A Review of Extant Empirical Literature*, 49 CRIM. JUST. & BEHAV. 143, 154–55 (2021) [<https://doi.org/10.1177/00938548211053367>].

²⁷⁷ See Andrea Cornwall, *Locating Citizen Participation*, 33 IDS BULL. i (2002) [<https://doi.org/10.1111/j.1759-5436.2002.tb00016.x>] (analyzing how “invited spaces” for citizen participation are shaped by the institutional power that creates them and arguing that participation without meaningful authority risks reproducing existing inequalities); Archon Fung & Erik Olin Wright, *Deepening Democracy: Innovations in Empowered Participatory Governance*, 29 POL. & SOC'Y 5 (2001) [<https://doi.org/10.1177/0032329201029001002>] (identifying the institutional design conditions under which participatory governance can produce substantive rather than symbolic outcomes).

Building trust between law enforcement and LGBTQ communities thus requires sustained, institutionalized engagement rather than episodic outreach.

Community policing models emphasize collaborative partnerships with local organizations, advocacy groups, and community leaders as central to addressing safety concerns and fostering mutual understanding.²⁷⁸ For LGBTQ communities, such partnerships create structured opportunities to discuss enforcement practices, co-develop policies related to public events and reporting mechanisms, and increase transparency in decision-making. When embedded in formal institutional routines, this engagement moves beyond consultation toward shared governance.

Studies indicate that procedural justice-focused interventions, particularly where community members perceive opportunities for voice and participation, can significantly enhance perceptions of police legitimacy, increase compliance with the law, and reduce conflict.²⁷⁹ Constitutional meaning also evolves through sustained social mobilization and contestation, as movements shift the boundaries of reasonable constitutional argument over time.²⁸⁰ Socio-legal research on participatory governance similarly suggests that durable reform emerges from iterative engagement between state actors and affected communities.²⁸¹

Community collaboration must include mechanisms for shared problem identification, data transparency, and policy feedback loops; without these structural features, outreach risks becoming symbolic and may exacerbate distrust. Research documenting the prevalence and consequences of stigma and discrimination against LGBTQ people shows how unsupportive legal and social climates produce adverse health, economic, and social outcomes that discourage public engagement.²⁸² When law enforcement agencies integrate community perspectives into policy development, data collection, and oversight, they help counter the perception that regulatory frameworks function primarily as tools of surveillance or social control.

F. Practical Obstacles to Reform

Identifying what reform requires differs from explaining why it is difficult to achieve. Status-based regulation persists even as constitutional doctrine evolves and formal policies change because it is sustained by administrative routines, risk-management incentives, and organizational cultures that both shape and are shaped by legal mandates. Its persistence is therefore not a story of law versus institutions, but of how institutions metabolize legal

²⁷⁸ See generally DENNIS P. ROSENBAUM, *THE CHALLENGE OF COMMUNITY POLICING: TESTING THE PROMISES* (1994) (examining the implementation of community policing and evaluating whether collaborative partnerships between police and communities improve crime control, problem solving, and police legitimacy).

²⁷⁹ *Id.*, *passim*; see also Anthony A. Braga et al., *Race, Place, and Effective Policing*, 45 ANN. REV. SOCIO. 535, 546–47 (2019) [<https://doi.org/10.1146/annurev-soc-073018-022541>]; Lorraine Mazerolle et al., *Shaping Citizen Perceptions of Police Legitimacy: A Randomized Field Trial of Procedural Justice*, 51 CRIMINOLOGY 33, 34–35, 52–53 (2013) [<https://doi.org/10.1111/j.1745-9125.2012.00289.x>].

²⁸⁰ See JACK BALKIN, *CONSTITUTIONAL REDEMPTION: POLITICAL FAITH IN AN UNJUST WORLD* 18–19 (2011).

²⁸¹ See, e.g., Johanna Speer, *Participatory Governance Reform: A Good Strategy for Increasing Government Responsiveness and Improving Public Services?*, 40 WORLD DEV. 2379, 2382–83 (2012) [<https://doi.org/10.1016/j.worlddev.2012.05.034>].

²⁸² CHRISTY MALLORY ET AL., UCLA WILLIAMS INST., *THE IMPACT OF STIGMA AND DISCRIMINATION AGAINST LGBTQ PEOPLE IN TEXAS* 1, 37 (2018), <https://williamsinstitute.law.ucla.edu/wp-content/uploads/Impact-LGBT-Discrimination-TX-Apr-2017.pdf> [<https://perma.cc/U8QD-7BVX>].

commands—sometimes blunting them, sometimes amplifying them, while always operating within the legal order.

A central obstacle lies in the relationship between formal compliance and substantive equality. As Edelman demonstrates through legal endogeneity, civil rights law is often absorbed into organizational policy frameworks in ways that privilege symbolic compliance over structural transformation.²⁸³ Institutions develop procedures (e.g., training programs, grievance systems, documentation protocols) that signal adherence to equality norms while preserving discretion. Courts, in turn, treat the existence of such procedures as evidence of reasonableness, creating a feedback loop in which organizational understandings of compliance reshape judicial interpretation. The risk for LGBTQ communities is that status-based regulation persists under the appearance of reform, as facially neutral policies leave underlying discretionary logics unchanged.

This tension must be confronted directly. The reforms catalogued here, including training, grievance systems, data collection, and community partnerships, are the same organizational forms through which endogeneity operates.²⁸⁴ Three features distinguish those capable of producing structural change from those that yield symbolic compliance. First, they operate under external mandates rather than internal incentives: consent decrees, funding conditions, or accreditation regimes impose accountability costs that institutions cannot avoid,²⁸⁵ raising the price of symbolic adoption.²⁸⁶ Second, they incorporate outcome measurement rather than treating process as compliance, generating disaggregated data that make disparities visible and allow evaluation of institutional outcomes.²⁸⁷ Third, they vest affected communities with structural authority rather than consultative roles, placing partial control over compliance outside the institution through independent funding, formal decision-making power, and escalation mechanisms.²⁸⁸ None of these features eliminates co-optation, but together they disrupt the inference that formal procedures alone constitute compliance by introducing external accountability, empirical verification, and countervailing authority into the regulatory framework.²⁸⁹

Administrative complexity further limits reform. Modern governance operates through dispersed actors and layered bureaucratic systems.²⁹⁰ Decisions about permitting, classification,

²⁸³ See, e.g., LAUREN B. EDELMAN, *WORKING LAW: COURTS, CORPORATIONS, AND SYMBOLIC CIVIL RIGHTS* 168–69, 216 (2016).

²⁸⁴ *Id.* at 12–15, 80–84, 168–69.

²⁸⁵ See, e.g., Charles F. Sabel & William H. Simon, *Destabilization Rights*, 117 HARV. L. REV. 1015, 1027–33 (2004) (noting the importance of external oversight, altering incentives, and constraining institutional discretion).

²⁸⁶ DiMaggio & Powell, *supra* note 260, at 150–52.

²⁸⁷ See *supra* PART IV.B; see also COMM. TO REV. RSCH. ON POLICE POL’Y & PRACS., NAT’L RSCH. COUNCIL, *FAIRNESS AND EFFECTIVENESS IN POLICING: THE EVIDENCE* 7–9, 23–25 (Wesley Skogan & Kathleen Frydl eds., 2004).

²⁸⁸ Sabel & Simon, *supra* note 285, at 1027–31.

²⁸⁹ *Id.*; see also Tim Bartley, *Institutional Emergence in an Era of Globalization: The Rise of Transnational Private Regulation of Labor and Environmental Conditions*, 113 AM. J. SOC. 297 (2007) [<https://doi.org/10.1086/518871>]; DiMaggio & Powell, *supra* note 260, at 150–52.

²⁹⁰ JOHN BREHM & SCOTT GATES, *WORKING, SHIRKING, AND SABOTAGE: BUREAUCRATIC RESPONSE TO A DEMOCRATIC PUBLIC* 1–5 (1997); LIPSKY, *supra* note 46, at 3–4, 13–16.

documentation, and enforcement are often made by frontline officials exercising situational discretion within broad mandates. Even when high-level policies articulate commitments to equality, implementation may reflect local pressures, resource constraints, or normative assumptions about risk and disorder.²⁹¹ Reform therefore requires more than doctrinal clarification; it demands attention to the institutional environments in which discretion operates.

Risk-management frameworks pose an additional challenge. Contemporary governance prioritizes the identification and mitigation of perceived threats.²⁹² Within such frameworks, marginalized identities can become proxies for risk, particularly where gender nonconformity or public visibility is framed as socially disruptive. Measures justified in the language of safety or administrative efficiency may therefore entrench identity-based scrutiny even absent discriminatory intent, and as the *Skrmetti* analysis shows, equal-protection doctrine is structurally ill-suited to address harms produced through such actuarial or administrative logics rather than explicit classification.²⁹³

Political dynamics also shape reform trajectories. Penal populism and moral panic can generate rapid legislative responses to LGBTQ visibility, particularly in contexts involving youth, public space, or health care.²⁹⁴ These dynamics incentivize broadly worded regulations that defer implementation to administrative actors. Litigation may halt the most overtly discriminatory statutes, but the underlying regulatory impulse can reappear in modified bureaucratic form.

Intersectional vulnerability compounds these obstacles. Reforms addressing identity in isolation may fail to disrupt the structural conditions that reproduce inequality. Without mechanisms that account for layered vulnerability, status-based regulation can adapt to new legal constraints while maintaining its practical effects.²⁹⁵

Finally, institutional legitimacy concerns create tension within reform efforts. Legitimacy cannot be secured through formal policy adoption alone. When communities observe persistent disparities in implementation, symbolic reforms may deepen distrust. Sustainable change therefore requires alignment between doctrinal commitments, administrative practice, and lived experience.

CONCLUSION

Contemporary policing and corrections in the United States reveal a transformation in the mechanisms through which gender and sexual diversity are regulated. That transformation reflects not a retreat from regulation, but its relocation into routinized institutional practices that structure classification, access, and enforcement.

²⁹¹ See LIPSKY, *supra* note 46, at 13–18, 201–03; Skolnick, *supra* note 204, at 42–47.

²⁹² See *supra* note 211.

²⁹³ See *supra* PART II.E (discussing *United States v. Skrmetti*, 605 U.S. 495 (2025)).

²⁹⁴ JOHN PRATT, PENAL POPULISM (2007); Maggie Craine, *Fear and Loathing in Animus: Moral Panic, the Contextualizing Tool for Challenging Gender-Affirming Care Bans*, 39 WIS. J. L. GENDER & SOC'Y 21, 32–34 (2024).

²⁹⁵ See *supra* PART III.D (discussing intersectional dimensions of status-based regulation).

The reforms outlined in this Article point toward models of policing and corrections that are both constitutionally grounded and institutionally responsive. Equitable practice does not require abandoning public-safety objectives; it requires recalibrating how authority is exercised so that governance does not reproduce patterns of exclusion.

The Article's central claim about reform follows from this analysis: the reforms catalogued in Part IV are not a remedy for the structural conditions that produce status-based regulation, but the institutional levers through which structural change becomes possible.²⁹⁶ Sustained supervisory constraint, embedded within accountability mechanisms that track disparate outcomes, reviewed by community partners with standing and resources, and feeding back into policy revision, can gradually reshape the discretionary practices through which status-based regulation operates. No single reform is sufficient; pursued collectively and institutionally reinforced, however, they shift the legal architecture within which administrative governance functions. The obstacles identified in Part IV.F remain significant, and this Article does not suggest that change is inevitable.

Finally, although this Article focuses on LGBTQ communities, the framework of status-based regulation has broader application wherever identity becomes a proxy for risk within administrative systems, reflecting a shift from overt prohibition to administrative governance and from statutory text to discretionary implementation. So long as constitutional doctrine remains oriented toward explicit classification and discriminatory intent, and administrative systems continue to govern identity through discretion and implementation, status-based regulation will persist as a structural feature of governance. Addressing it therefore requires intervention across legal and institutional registers.

²⁹⁶ See EDELMAN, *supra* note 283, at 33–41; MASHAW, *supra* note 100, at 24–30.